POORI KITAAB, TASVEER DAR TASVEER · HINGLISH EDITION

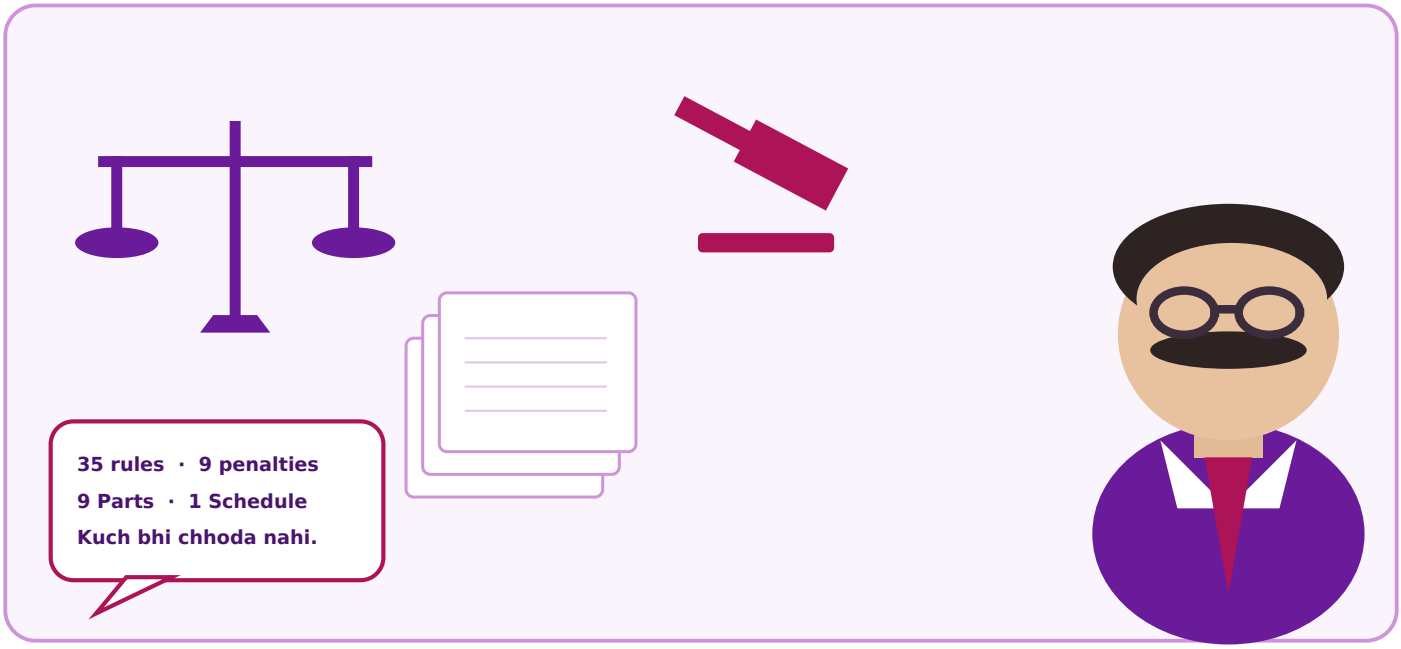
CCS (CCA) RULES 1965

THE COMIC BOOK

Central Civil Services
(Classification, Control and Appeal) Rules, 1965
Government of India · administered by DoPT

Har rule. Har sub-rule. Har proviso, exception, clause aur explanation.

Aasaan Hinglish mein — stories, tables, timelines aur memory tricks ke saath.



35	9	9	13	6	1
Rules	Penalties	Parts	Defined terms	Fixed deadlines	Schedule

INSIDE

Part I General · Part II Classification · Part III Appointing Authority · Part IV Suspension · Part V Penalties & Authorities
Part VI Procedure · Part VII Appeals · Part VIII Revision & Review · Part IX Miscellaneous · The Schedule · Master charts

Updated to include DoPT notification G.S.R. 21(E) dated 12 January 2026 · position as on 1 November 2026

Employees, disciplinary authorities aur exam aspirants ke liye — Gazette text ka substitute nahi.

> **“Law made simple — rule-book ab koi mystery nahi.”**
>
> Babu-ji ka vaada: har rule, proviso, exception aur deadline ek jagah — kuch bhi chhoda nahi.

ANDAR KYA HAI

nine parts · thirty-five rules · one case, end to end

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RANGON KA MATLAB

RULE KYA KEHTA HAI · PROVISO · EXPLANATION · NOTE

Magenta bar = official shabd, jaisa likha hai. Gold = proviso. Teal = explanation. Grey = Rules ka note.
Green box = kya cover hai. Red box = kya chhoot gaya. Blue panel = office example. Gold medal = yaad rakhne wali baat.

Jaldi mein

Magenta rule headings padhiye, phir green aur red boxes. Ek Part das minute mein.

DA ya IO hain

Gold 'Dhyan se' panels aur peeche ke Toolkits padhiye. Wahi file-notes hain.

Exam ke liye

Posters, timeline chart aur aakhir ke 30 sawaal padhiye. Phir khud ko test kariye.

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PEHLE YE CHAAR RULES

Rule 10 — suspension: teen grounds, 48 ghante, 90 din, 180-din ke extension.
Rule 14 — 24-step inquiry: charge sheet, 15 din, evidence, defence, report.
Rule 15 — report + 15 din + UPSC advice, phir speaking order.
Rules 11 aur 12 — nau penalties aur kaun laga sakta hai — har exam question inhi par bana hai.

HOW TO USE THIS BOOK

THE 2-MINUTE TOUR

Yeh kitaab **CCS (CCA) Rules, 1965** ko comic-book style guide bana deti hai. Har rule, sub-rule, proviso, exception, clause aur explanation yahin hai — pehle **official shabdon** mein, phir **aasaan bhasha** mein, pictures, tables aur memory tricks ke saath.

- 35 rules · 9 penalties · 9 parts · 1 Schedule — kuch bhi chhoda nahi.
- Likhi gayi hai curious employee, busy Disciplinary Authority, naye Inquiry Officer aur exam aspirant ke liye.
- Simple Hinglish. Chhote vaakya. Office ke asli examples.



Namaste! Main hoon **Babu-ji**. Poore 30 saal establishment section mein kaam kiya hai. Mere saath chaliye — CCA Rules story lagenge, statute nahi.

How each page works — Four voices on every page

1 OFFICIAL SHABD → 2 AASAAN MATLAB → 3 DHYAN SE → 4 Example

Kitaab mein chaar layer hain — jitna gehra padhna ho, utna padhiye:

“The rule says”
Statutory text — serif font, magenta bar. Chhota, sahi, as-it-is.

“In simple words”
Wahi baat roz ki bhasha mein. Jaldi ho toh sirf yahi padhiye.

Watch out
Trap, proviso, exception, deadline. Yahan hi zyadatar cases jeete ya haarte hain.

Example
Chhoti si office story jo baat yaad rakhwati hai.

YE KITAAB KISKE LIYE

- Apna charge sheet samajhne ke liye.
- Departmental inquiry sahi tareeke se chalane ke liye.
- Appeal likhne ya defend karne ke liye.
- Departmental exams (AAO, LDCE, MACP promotion).

ISKE LIYE MAT USE KARIYE

- Court ya tribunal mein quote karne ke liye — wahan Gazette ka text hi likhiye.
- Apni Vigilance/Establishment section ki salah ki jagah.
- CCS (Conduct) Rules cover karne ke liye — wo alag rule-book hai.
- State rules, PSU rules ya All India Service rules — wo alag hain.

NOTE
Yeh sirf padhne ki guide hai. Kanoon wahi hai jo Gazette notification kehta hai. Live case mein action lene se pehle current text aur latest DoPT instructions zaroor check kariye.

The cast — Who is who in a disciplinary case

Appointing Authority
Jis authority ne aapko appoint kiya — sab possible authorities mein sabse **upar wali**. Rule 2(a).

Disciplinary Authority (DA)
Rules ke tahat aap par penalty lagane ki power jis authority ke paas hai. Rule 2(g).

Inquiring Authority (IO)
Inquiry chalane ke liye appoint kiya gaya officer (ya Complaints Committee). Rule 14(2).

Presenting Officer (PO)
Jo officer department ka case aapke khilaf rakhta hai. Rule 14(5)(c).

Charged Officer (CO)
Aap — charge sheet ka saamna karne wale Government servant.

Defence Assistant (DA)
Sahyogi (ya retired officer) jo inquiry mein aapki madad karta hai. Rule 14(8).

Review Committee
Har 90 din mein aapki suspension review karne wali committee. Rule 10(6).

UPSC
Union Public Service Commission — khaas cases mein salaah li jaati hai. Rules 15(3), 19, 27, 29.

! **YAAD RAKHIYE**
Do alag "DA" hain: **Disciplinary Authority** aur **Defence Assistant**. Confusion se bachne ke liye hum dono ko poora likhte hain.



BABU-JI KEHTE HAIN

Poore rule-book ke chhe shabd hain: **appointing**, **disciplinary**, **inquiring**, **presenting**, **appellate** aur **reviewing** authority. Kaun kaun hai, yeh pata chal gaya toh case khud chal padta hai.

THE CHAIN
Appointing → Disciplinary → Inquiring → Appellate → Revisional.

THE ONE EXCEPTION
Ek hi aadmi Appointing aur Disciplinary dono ho sakta hai — par Inquiring aur Presenting kabhi nahi.

Ek page ka example. Ek Assistant Section Officer (Group 'B', General Central Service) ko Under Secretary major-penalty charge sheet deta hai. Under Secretary **disciplinary authority** hai; **appointing authority** Deputy Secretary; **Inquiring Authority** Rule 14(2) ke tahat appoint kiya gaya retired Joint Director; **Presenting Officer** ek Section Officer. Penalty lage toh appeal **Rule 24(1)(i)(a)** ke tahat appointing authority ke paas jaayegi — kyunki order uske subordinate ne diya hai.

! **YAAD RAKHIYE**
Koi paper file mein na ho toh **defect** hai — aur har defect ke saamne likhne ke liye ek rule number hota hai.

The paper trail — Five documents to recognise on sight

Document	What it must contain	Rule
Charge memorandum	Articles of charge, imputations, documents, witnesses	14(3), 14(4)(a)
Inquiry notice	Date, time and place of hearing, with notice	14(7), 14(9)
Inquiry report	Charges, defence, evidence, findings with reasons	14(23)
Disagreement note	Tentative reasons and a 15-day opportunity	15(2)
Penalty order	Findings, reasons, penalty, appellate forum	17, 30

THE MAP

ONE CASE, EIGHT STATIONS

Har disciplinary case — late attendance ki warning se dismissal tak — ek hi railway line par chalta hai. Aath station yaad kar liye toh poora rule-book yaad.



Rules ko train timetable samajhiye. Ek station chhoot gaya toh court poori journey cancel kar sakti hai.

1. **Stage 1 — Preliminary**
   Complaint, vigilance check, preliminary inquiry — phir tay hota hai ki case banta hai ya nahi. (Koi specific rule nahi: yeh administrative hissa hai.)

2. **Stage 2 — Suspension, if needed**
   Rule 10. Sirf teen grounds hain. Har 90 din review.

3. **Stage 3 — Charge sheet**
   Rule 14(3)-(4). Articles of charge, statement of imputations, documents aur witnesses ki list. Jawab ke liye 15 din.

4. **Stage 4 — Inquiry**
   Rule 14(5)-(22). Presenting Officer, defence assistant, witnesses, cross-examination — aur na aaye toh ex parte.

5. **Stage 5 — Inquiry report**
   Rule 14(23)-(24). Har charge par finding; report chhe mahine mein, ek-ek chhe mahine ki extension.

6. **Stage 6 — Penalty**
   Rules 15-17. Report aapko milti hai, jawab ke liye 15 din, zaroorat par UPSC advice, speaking order, aur order aapko serve.

7. **Stage 7 — Appeal**
   Rules 22-28. 45 din. Appellate authority confirm, reduce, enhance, set aside ya remit kar sakti hai.

8. **Stage 8 — Revision / Review**
   Rules 29 aur 29-A. President (aur kuch aur) record mangwa sakte hain; review sirf naye material par.

Station	Rule	You can challenge it?
Suspension	10	Yes — appeal under Rule 23(i)
Charge sheet / IO appointment	14	No appeal (Rule 22(ii)-(iii)); but writ court and representation
Inquiry report	14(23)	Not separately appealable; challenge with the final order
Penalty order	15/16/17	Yes — appeal, then revision
Appellate order	27	Revision under Rule 29; judicial review
President's order	29-A	No appeal (Rule 22(i)); judicial review only

NOTE
Article 311(1): appointing authority se neeche wali authority kisi ko dismiss, remove ya reduce in rank nahi kar sakti. Article 311(2): charge, evidence aur jawab ka mauka diye bina aisi penalty nahi. CCS (CCA) Rules wahi machinery hain jo Article 309 aur 311 ko chalati hai.

PART I — GENERAL

RULES 1 TO 3

Short title · Interpretation · Application

Part I darwaza hai: rule-book ka naam, uski bhasha aur woh log jinke upar yeh lagta hai — sab yahan tay hota hai. Service law mein zyadatar jeetne wali challenges Part I ki kisi definition se hi shuru hoti hain.



Rule 2 hi dictionary hai. Charge sheet mein “disciplinary authority” galat istemaal hua, toh poora case gir sakta hai.

Rule 1 Short title and commencement

RULE KYA KEHTA HAI

(1) These Rules may be called the Central Civil Services (Classification, Control and Appeal) Rules, 1965. (2) They shall come into force on the 1st December, 1965.

Rule 1

Aasaan shabdon mein: rule-book ka naam **CCS (CCA) Rules, 1965** hai aur yeh **1 December 1965** se chal raha hai. Ise President ne Constitution ke **Article 309 ke proviso** se banaya, aur Indian Audit and Accounts Department ke logon ke liye **Comptroller and Auditor-General** se salah le kar (Article 148(5)).

The three C's

C lassification (kaun Group A/B/C), **C** ontrol (discipline, penalties, inquiries), **A** ppeal (appeal, revision, review).

Made under

Article 309 ka proviso — Government servants ke liye rules banane ki President ki power.

Consultation

CAG — Indian Audit and Accounts Department ke logon ke liye.

Still alive

Wahi 1965 ke rules, kai baar amend hue — sabse naya amendment **12 January 2026** ka hai.

YAAD RAKHIYE

Yaad rakhne wale amendment saal: **2014** (Second Amendment Rules, 31 October 2014 — UPSC ki advice officer ko deni hogi, aur Rule 32 hata diya gaya); **2017** (Amendment Rules, G.S.R. 548(E), 2 June 2017 — fixed timeline: defence ke 15 din, 45 din ki ceiling, pehli peshi 10 working days, inquiry chhe mahine); **2023 aur 2024** (Schedule mein badlav); **12 January 2026** (G.S.R. 21(E) — Rule 10(1) proviso aur Rule 12(4)(a) badle: CAG/IA&AD ka exception bada hua).

Rule 2 Interpretation — the dictionary of the Rules

Rule 2 mein 13 expressions define hue hain. Yehi tay karte hain **kaun aapko suspend kar sakta hai, kaun penalty laga sakta hai aur kaun appeal sunega** — yaani yeh sirf theory nahi. Paanch bade yaad kar lijiye: appointing authority, disciplinary authority, Government servant, head of department aur Secretary.

Rule 2(a) Appointing authority — “whichever is the highest”

RULE KYA KEHTA HAI

In relation to a Government servant, "appointing authority" means — (i) the authority empowered to make appointments to the Service of which he is a member or to the grade in which he is included; or (ii) the authority empowered to make appointments to the post he holds; or (iii) the authority which appointed him to such Service, grade or post; or (iv) where he was a permanent member of another Service or held another permanent post and has been in continuous employment, the authority which appointed him to that Service, grade or post — whichever authority is the highest authority.

Rule 2(a)

Chaar possible jawab diye jaate hain. Inme se jo **sabse upar** ho, wahi maana jaata hai. Isse koi junior authority senior officer ko sirf isliye punish nahi kar sakti ki usne last promotion order sign kiya tha.

Clue in the rule	Ask yourself
(i) Service / grade	Who appoints people to my Service or to my grade?
(ii) The post I hold	Who appoints to this post under the recruitment rules?
(iii) My actual appointment	Which authority signed my appointment?
(iv) My earlier permanent post	Was I a permanent member elsewhere before continuous employment?

e **EXAMPLE**
Ek Section Officer Joint Secretary se appoint hua, par Service rules kehte hain grade mein **Director** appoint karta hai. Joint Secretary upar hai — toh **Joint Secretary** hi appointing authority hain.

! **DHYAN SE**
Appointing authority **facts aur rules** ka sawaal hai, iska nahi ki transfer order par kiska signature hai. Galat pehchan major penalty ko Article 311(1) aur Rule 12(4)(a) ke tahat gira sakti hai.

Rule 2(b) to 2(f) — Cadre authority, Central Civil Service, Commission, Defence Services, Department

2(b) Cadre authority
Service ke sandarbh mein wahi matlab jo us Service ke rules mein hai.

2(c) Central Civil Service / post
Defence Services ke usi Group ka civilian Service ya civilian post bhi isme aata hai.

2(d) Commission
Union Public Service Commission (UPSC).

2(e) Defence Services
Ministry of Defence ke woh Services jo Defence Estimates se pay hote hain, par Army Act 1950, Navy Act 1957 ya Air Force Act 1950 ke tahat **nahi** aate.

2(f) Department of GoI
Koi bhi establishment ya organisation jise President ne Official Gazette mein notification se Government of India ka department ghoshit kiya ho.

Rule 2(g) and 2(h) — Disciplinary authority and "Government servant"

RULE KYA KEHTA HAI

(g) "Disciplinary authority" means the authority competent under these rules to impose on a Government servant any of the penalties specified in Rule 11.

Rule 2(g)

RULE KYA KEHTA HAI

(h) “Government servant” means a person who — (i) is a member of a Service or holds a civil post under the Union, and includes any such person on foreign service or whose services are temporarily placed at the disposal of a State Government, or a local or other authority; (ii) is a member of a Service or holds a civil post under a State Government and whose services are temporarily placed at the disposal of the Central Government; (iii) is in the service of a local or other authority and whose services are temporarily placed at the disposal of the Central Government.

Rule 2(h)

YE LOG COVER HAIN

- Central Civil Service ka member.
- Central civil post par rakha gaya vyakti.
- Foreign service par gaya Central employee.
- State, local body ya kisi aur authority ko diya gaya Central employee.
- State ya local body ka employee jo Centre ko diya gaya ho.

These are outside Rule 2(h)

- Private sector ka employee.
- Sirf honorary ya casual kaam karne wala (Rule 3 dekhiye).
- All India Service ka officer (unke apne AIS rules hain).
- Railway Code ke tahat railway servant (Rule 3).
- Contract par rakha gaya vyakti — jab tak terms kuch aur na kahein.

! **YAAD RAKHIYE**

Rule 20 aur Rule 21 mein theek yehi teen limbs hain: yeh tay karte hain **borrowed officer par discipline kaun chalayega**. 2(h) yaad rahe toh poora borrowing chapter aasaan.

Rule 2(i) to 2(m) Heads, Schedule, Secretary, Service

2(i) Head of the department

Woh authority jo Fundamental & Supplementary Rules ya Civil Service Regulations ke tahat head of department ghoshit hai.

2(j) Head of the office

Woh authority jo General Financial Rules ke tahat head of office ghoshit hai.

2(k) Schedule

In Rules ka Schedule — Services, appointing authorities aur penalty powers ki badi table.

2(m) Service

Union ki civil service.

RULE KYA KEHTA HAI

2(l) “Secretary” means the Secretary to the Government of India in any Ministry or Department, and includes — (i) a Special Secretary or Additional Secretary; (ii) a Joint Secretary in independent charge of a Ministry or Department; (iii) in relation to the Cabinet Secretariat, the Secretary to the Cabinet; (iv) in relation to the President's Secretariat, the Secretary to the President or the Military Secretary; (v) in relation to the PM's Secretariat, the Secretary to the PM; (vi) in relation to the (then) Planning Commission, the Secretary or Additional Secretary.

Rule 2(l)

i **NOTE**

“Secretary” kyun maayne rakhta hai: Rule 12(3) ke tahat Ministry/Department ka **Secretary** us Ministry ke Group 'C' aur Group 'D' employees par Rule 11 ki koi bhi penalty laga sakta hai — bahut badi practical power.

Rule 3 Application — who is bound by these Rules

RULE KYA KEHTA HAI

(1) These Rules shall apply to every Government servant including every civilian Government servant in the Defence Services, but shall not apply to — (a) any railway servant as defined in Rule 102 of Volume I of the Indian Railways Establishment Code; (b) any member of the All India Services; (c) any person in casual employment; (d) any person subject to discharge from service on less than one month's notice; (e) any person for whom special provision is made, in respect of matters covered by these Rules, by or under any law for the time being in force or under any agreement entered into with the previous approval of the President.

Rule 3(1)

RULE 3(1) MEIN KAUN

- Har Government servant.
- Defence Services ka har **civilian** Government servant.
- Deputation aur foreign service par gaye employees (Rules 20-21 ke saath).
- Group A, B, C aur (pehle) Group D employees.

Exceptions in 3(1)(a)-(e)

- Railway Establishment Code ke tahat railway servants.
- All India Services ke members.
- Casual labour.
- Woh log jo **ek mahine se kam** notice par discharge ho sakte hain.
- Woh log jo kisi special law, ya President se approved agreement ke under aate hain.

Ab teen zaroori riders:

1. **3(2)** — President order se kisi bhi Group ke Government servants ko in Rules se poori tarah ya kuch hisse mein bahar kar sakte hain.
2. **3(3)** — Agar koi (jispar yeh Rules lagte hain) temporarily aise post par jata hai jo exception (a) ya (e) mein aati hai, toh bhi Rules uspar **lagte rahenge**.
3. **3(4)** — Agar shak ho ki Rules kisi par lagte hain ya nahi, ya woh kis Service mein hai, toh mamla **President** ke paas jaata hai, aur unka faisla final hai.

e **EXAMPLE**
Ek Central Secretariat assistant deputation par Railways gaya. Railway servants 3(1)(a) se bahar hain, phir bhi Rule 3(3) us temporary transfer ke dauraan CCS (CCA) Rules uspar chalta rakhta hai.

! **DHYAN SE**
Railway, AIS aur casual employees ke **apne** discipline rules hain. Unpar CCS (CCA) Rules lagana jurisdiction ka error hai — jo writ mein bhi theek ho sakta hai.

Part I ek line mein: apni definitions jaan lijiye (Rule 2), aur yeh bhi ki Rules aap par lagte hain ya nahi (Rule 3).



BABU-JI KEHTE HAIN

Definitions boring lagti hain — jab tak charge sheet mein galat authority ka naam na aa jaye. Phir wahi poora case ban jaati hain.

2(a) IN ONE LINE

Chaar candidate authorities; jo sabse upar ho, wahi chuniye.

3(1) IN ONE LINE

Railways, AIS, casual aur ek mahine se kam notice wale staff bahar hain.

PART II — CLASSIFICATION

RULES 4 TO 7

Services · Constitution of Services · Posts · 6-A · General Central Service

"Group A, B, C ya D" hi tay karta hai ki kaunsi disciplinary authority, kaunsi appellate authority aur kitni penalty power lagegi. Isliye classification poore rule-book ka skeleton hai.



Nahi, "Group" aur "Grade Pay" ek cheez nahi. Group in Rules ka legal category hai.

Rule 4 Classification of Services

RULE KYA KEHTA HAI

(1) The Civil Services of the Union shall be classified as follows: (i) Central Civil Services, Group 'A'; (ii) Group 'B'; (iii) Group 'C'; (iv) Group 'D'. (2) If a Service consists of more than one grade, different grades of such Service may be included in different groups.

Rule 4

A	B	C	D
Top management Gazetted	Middle level Gazetted	Supervisory clerical	Support staff

Sub-rule (2) hi baareek baat hai: **ek Service do groups mein ho sakti hai**. Yaani ek hi Service mein officer ek post par Group B aur doosri par Group A ho sakta hai. Isi wajah se Rule 12 Explanation II kehta hai ki higher group mein promote hone wala disciplinary purpose ke liye usi higher group ka maana jaata hai.

NOTE

Sixth Pay Commission ke baad Group 'D' ki saari posts (Defence Services chhod kar) Group 'C' mein upgrade ho gayi. Rules mein Group 'D' abhi bhi likha hai, par zyadatar Ministries mein yeh category ab historical hai.

Rule 5 Constitution of Central Civil Services

RULE KYA KEHTA HAI

The Central Civil Services, Group 'A', Group 'B', Group 'C' and Group 'D', shall consist of the Services and grades of Services specified in the Schedule.

Rule 5

Aasaan shabdon mein: **Schedule** official list hai. Aapki Service Schedule mein nahi hai, toh aap **General Central Service** mein (Rule 7).

Rule 6 Classification of Posts

RULE KYA KEHTA HAI

Civil Posts under the Union, other than those ordinarily held by persons to whom these Rules do not apply, shall, by a general or special order of the President, be classified as: (i) Central Civil Posts, Group 'A'; (ii) Group 'B'; (iii) Group 'C'; (iv) Group 'D'.

Rule 6

Services Rule 4 se classify hoti hain, **posts** Rule 6 se. Dono mein wahi chaar groups hain. Farak isliye maayne rakhta hai ki Rule 12 “member of a Service” aur “holder of a post” ko alag-alag dekhta hai.

Rule 6-A Class I / II / III / IV means Group A / B / C / D

RULE KYA KEHTA HAI

All references to Central Civil Services/Central Civil Posts, Class I, Class II, Class III and Class IV in all Rules, Orders, Schedules, Notifications, Regulations and Instructions in force immediately before the commencement of these Rules shall be construed as references to Group 'A', 'B', 'C' and 'D' respectively.

Rule 6-A

YAAD RAKHIYE

Yeh **translation rule** hai. Purani notifications mein “Class III” likha hota hai — use “Group C” padhiye. Yahi rule kehta hai ki “Class ya Classes” ka matlab “Group ya Groups” hai.

Rule 7 General Central Service

RULE KYA KEHTA HAI

Central Civil posts of any group not included in any other Central Civil Service shall be deemed to be included in the General Central Service of the corresponding group, and a Government servant appointed to any such post shall be deemed to be a member of that Service unless he is already a member of any other Central Civil Service of the same group.

Rule 7

General Central Service (GCS) un saari Central posts ka default ghar hai jo kisi aur Service mein nahi aati. Organised Services se bahar Secretariat aur field office ki zyadatar posts GCS mein hain.

Question	Answer	Rule
Is my Service listed?	Yes → you belong to that Service	5
Not listed?	You belong to the General Central Service	7
Already in another Service of the same group?	You stay in that Service	7
Old order says “Class II”?	Read it as Group 'B'	6-A
One Service, several grades?	Grades may sit in different groups	4(2)

Part II ek line mein: apna Group dhoondhiye. Wahi tay karta hai kaun punish karega aur kaun appeal sunega.



BABU-JI KEHTE HAIN

Group rank nahi hai. Ek hi rank ke do officers alag Groups mein ho sakte hain, agar unki posts ki classification alag hai.

GROUP 'D' TODAY

Sixth Pay Commission ke baad zyadatar Group 'D' posts Group 'C' ho gayi.

EXAM PHRASE

“Group 'A' Central Civil Service” — bilkul aise hi boliye.

PART III — APPOINTING AUTHORITY

RULES 8 AND 9

Jise appoint karne ki power hai, wahi (Rule 12 ke saath) punish bhi kar sakta hai. Part III appointment ki power ko President (Group 'A') aur Schedule mein naam wali authorities (Groups B, C, D) ke beech baantta hai.



Group 'A' officers ko President appoint karte hain — par President bahut busy hain, isliye power aam taur par delegate hoti hai.

Rule 8 Appointments to Group 'A' Services and Posts

RULE KYA KEHTA HAI

All appointments to Central Civil Services, Group 'A' and Central Civil Posts, Group 'A', shall be made by the President: Provided that the President may, by a general or special order and subject to such conditions as he may specify in such order, delegate to any other authority the power to make such appointments.

Rule 8

Aasaan shabdon mein: **Group 'A' officers President appoint karte hain** — practical mein Ministries/Departments ko general delegation order se. Isi delegation se Joint Secretary ya Secretary zyadatar Group 'A' posts ki appointing authority ban jaate hain.

DHYAN SE

Jab President appointment ki power delegate karte hain, toh delegate ko Rules 10 aur 12 ke tahat **suspend aur discipline** karne ki power bhi milti hai — Schedule ki limits tak. Par **President khud** kisi bhi Government servant par kabhi bhi koi bhi penalty laga sakte hain (Rule 12(1)), aur kuch orders ki appeal President ke paas jaati hai (Rule 24).

Rule 9 Appointments to other Services and Posts

RULE KYA KEHTA HAI

(1) All appointments to the Central Civil Services (other than the General Central Service) Group 'B', Group 'C' and Group 'D' shall be made by the authorities specified in this behalf in the Schedule: Provided that in respect of Group 'C' and Group 'D' Civilian Services or civilian posts in the Defence Services, appointments may be made by officers empowered in this behalf by the aforesaid authorities.

Rule 9(1)

RULE KYA KEHTA HAI

(2) All appointments to Central Civil Posts, Group 'B', Group 'C' and Group 'D', included in the General Central Service shall be made by the authorities specified in that behalf by a general or special order of the President or, where no such order has been made, by the authorities specified in this behalf in the Schedule.

Rule 9(2)

Situation	Appointing authority
Group 'A' Service or post	The President (Rule 8) — usually delegated
Group B/C/D of an organised Service	As named in the Schedule (Rule 9(1))
Group B/C/D post in the General Central Service	As ordered by the President, else the Schedule (Rule 9(2))
Defence civilian Group C/D	Officers empowered by the Schedule authority (proviso to Rule 9(1))

! **YAAD RAKHIYE**
Exam hook: Rule 8 = President = Group 'A'. Rule 9 = Schedule = baaki sab. Rule 12 appointing authority ko disciplinary authority bana deta hai.

1. **Step 1 · Read the Schedule**
Apni Service ya post ki row dhoondhiye. Column (3) appointing authority ka naam deta hai.

2. **Step 2 · No row?**
President ka general ya special order dekhiye (Rule 9(2)). Na mile toh Schedule lagta hai.

3. **Step 3 · Group 'A'**
Rule 8 ke proviso se jaari delegation order check kariye.

4. **Step 4 · Cross-check**
Appointing authority aam taur par wahi hoti hai jiska naam aapke appointment order par hai.

e **EXAMPLE**
Ministry ka ek Section Officer Schedule ke tahat Deputy Secretary se appoint hua. Major-penalty order Under Secretary ne diya. Order **void** hai — Rule 12(4)(a) aur Article 311(1) — kyunki Under Secretary Deputy Secretary se neeche hai. Sign karne wali sahi authority Deputy Secretary ya usse upar ki koi authority hai.

Part III ek line mein: appointment ki power hi disciplinary power ki jad hai.



BABU-JI KEHTE HAIN

President khud kisi order par sign karein — aisa lagbhag hota hi nahi. Par har Group 'A' order par likha hota hai “by order and in the name of the President”. Wahi delegation hai.

ARTICLE 311(1)
Subordinate authority kisi ko dismiss, remove ya reduce in rank nahi kar sakti.

RULE 12(4)(a)
Wahi baat, CCS (CCA) Rules ke andar padhiye.

CHAPTER KHATAM · AAPNE KYA PADHA

- Rule 8 Appointments to Group 'A' Services and Posts
- Rule 9 Appointments to other Services and Posts

Now the part every employee reads first — suspension, and its three grounds and two clocks.

AAGE KYA: Part IV — Suspension

PART IV — SUSPENSION

RULE 10

Ten sub-rules · 2 provisos · 1 Explanation · 1 major 2026 amendment

Suspension **penalty nahi** hai. Yeh sirf rok-tok hai: case dekhte waqt aapko duty se door rakha jaata hai. Guilt prove hue bina dard hota hai — isliye Rules ne iske saath conditions, time-limits aur reviews lagaye hain.



Sirf teen grounds hain. Agar suspension order mein chauta koi reason likha ho, toh order kanoon mein kamzor hai.

Rule 10(1) Who can suspend you — and on what grounds

RULE KYA KEHTA HAI

The appointing authority or any authority to which it is subordinate or the disciplinary authority or any other authority empowered in that behalf by the President, by general or special order, may place a Government servant under suspension — (a) where a disciplinary proceeding against him is contemplated or is pending; or (aa) where, in the opinion of the authority aforesaid, he has engaged himself in activities prejudicial to the interest of the security of the State; or (b) where a case against him in respect of any criminal offence is under investigation, inquiry or trial.

Rule 10(1)

Ground	Plain meaning	Typical case
(a) Proceedings contemplated or pending	A charge sheet is being prepared **or** has already been issued.	Annual property return mismatch; unauthorised absence; insubordination
(aa) Activities prejudicial to State security	The authority **opines** that you acted against the security of the State.	Leaking classified papers; suspected espionage links
(b) Criminal case pending	Offence under investigation, inquiry or trial — even if you are on bail.	FIR by CBI/ACB; trap case under the PC Act, 1988

Chaar tarah ki authorities suspend kar sakti hain: **appointing authority**, usse **upar** wali koi bhi authority, **disciplinary authority**, aur President ke general ya special order se specially **empowered** authority.

SUSPEND KAUN KAR SAKTA HAI

- Appointing authority.
- Jis authority ke neeche appointing authority aati hai (yaani upar wali).
- Disciplinary authority.
- President ke general ya special order se empowered authority.

Suspension cannot be ordered by

- Barabar rank ka sahyogi.
- Appointing authority se junior authority (sirf tab jab specially empowered ho — aur tab bhi turant report karna hoga).
- Koi court, departmental mamle mein.
- Vigilance officer apne aap — woh sirf sifarish karta hai.

Proviso to Rule 10(1) The reporting duty — and the 2026 widening

PROVISO

Provided that, except in the case of an order of suspension made by the Comptroller and Auditor-General in regard to a member of the Indian Audit and Accounts Service and in regard to an Assistant Accountant General or a member of General Central Service Group 'C' holding a Central Civil post in the Indian Audit and Accounts Department, where the order of suspension is made by an authority lower than the appointing authority, such authority shall forthwith report to the appointing authority the circumstances in which the order was made.

Proviso to Rule 10(1), as substituted by G.S.R. 21(E), 12 January 2026

★ **NAYA / LATEST**

What changed on 12 January 2026. The old proviso exempted from the reporting duty only suspensions by the **CAG** of IA&AS members and Assistant Accountant Generals. The amendment adds **Group 'C' Central Civil posts in the Indian Audit and Accounts Department**. So the CAG (and the IA&AD hierarchy) may suspend such staff without the "report forthwith to the appointing authority" formality — a recognition that the CAG's disciplinary control under Article 148 is separate from the executive's.

! **YAAD RAKHIYE**

Yeh proviso **procedure ka safeguard** hai, power ka source nahi. Junior authority ne suspend kiya toh order khud-ba-khud void nahi hota — par turant report na karna appeal mein strong ground ban jaata hai.

Rule 10(2) Deemed suspension — when the law suspends you without an order

RULE KYA KEHTA HAI

A Government servant shall be deemed to have been placed under suspension by an order of the appointing authority — (a) with effect from the date of his detention, if he is detained in custody, whether on a criminal charge or otherwise, for a period exceeding forty-eight hours; (b) with effect from the date of his conviction, if, in the event of a conviction for an offence, he is sentenced to a term of imprisonment exceeding forty-eight hours and is not forthwith dismissed or removed or compulsorily retired consequent to such conviction.

Rule 10(2)

48	2	0
hours of custody the trigger	modes of deemed suspension	orders needed by the department

Deemed suspension kanoon se apne aap lag jaata hai. Koi order nahi hota; condition poori hui aur aap suspended, aur yeh **detention (ya conviction) ki date** se ginte hain — office mein kisi ne notice liya us din se nahi.

EXPLANATION

Explanation — The period of forty-eight hours referred to in clause (b) of this sub-rule shall be computed from the commencement of the imprisonment after the conviction and for this purpose, intermittent periods of imprisonment, if any, shall be taken into account.

Explanation to Rule 10(2)

e **EXAMPLE**

Somvaar shaam 6 baje pakde gaye, Budhvaar shaam 8 baje chhoote — yeh 50 ghante hain, toh deemed suspension **Somvaar 6 baje** se. 40 ghante mein chhoot jaate toh deemed suspension nahi banta, par 10(1) ke tahat alag order phir bhi ho sakta hai.

DHYAN SE
Deemed suspension aur paisa: subsistence allowance, headquarters aur leave ke liye yeh ordered suspension jaisa hi hai. Par criminal case khatam hone par yeh apne aap nahi chalta — ise review ya revoke karna padta hai.

Rule 10(3) When a penalty is set aside in appeal or review

RULE KYA KEHTA HAI

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Government servant under suspension is set aside in appeal or on review under these rules and the case is remitted for further inquiry or action or with any other directions, the order of his suspension shall be deemed to have continued in force on and from the date of the original order of dismissal, removal or compulsory retirement and shall remain in force until further orders.

Rule 10(3)

Ise **ek hi dhaage** ki tarah padhiye: suspend hue, dismiss hue, dismissal set aside hui aur case wapas aaya — kanoon maanta hai ki aap poore samay suspension mein hi the, koi gap nahi.

Rule 10(4) When a court sets aside the penalty

RULE KYA KEHTA HAI

Where a penalty of dismissal, removal or compulsory retirement from service imposed upon a Government servant is set aside or declared or rendered void in consequence of or by a decision of a Court of Law and the disciplinary authority, on a consideration of the circumstances of the case, decides to hold a further inquiry against him on the allegations on which the penalty of dismissal, removal or compulsory retirement was originally imposed, the Government servant shall be deemed to have been placed under suspension by the Appointing Authority from the date of the original order of dismissal, removal or compulsory retirement and shall continue to remain under suspension until further orders.

Rule 10(4)

PROVISO

Provided that no such further inquiry shall be ordered unless it is intended to meet a situation where the Court has passed an order purely on technical grounds without going into the merits of the case.

Proviso to Rule 10(4)

Court's reason for setting aside	Fresh inquiry?	Suspension?
Purely technical — e.g. wrong authority signed, no inquiry held, rules of natural justice ignored	Yes, permitted	Deemed from the original dismissal date
On merits — evidence did not prove the charge, or the charge itself fails	No	No deemed suspension

DHYAN SE
Yeh proviso **“merits par haar ke baad phir se ladne”** se bachata hai. Technical ground par set aside hona naya inquiry karne ka ishara hai — innocence ka certificate nahi; par tab tak officer bahaal ho jaata hai.

Rule 10(5) How long suspension lasts, and who can end it

RULE KYA KEHTA HAI

(a) Subject to the provisions contained in sub-rule (7), an order of suspension made or deemed to have been made under this rule shall continue to remain in force until it is modified or revoked by the authority competent to do so. (b) Where a Government servant is suspended or is deemed to have been suspended (whether in connection with any disciplinary proceeding or otherwise), and any other disciplinary proceeding is commenced against him during the continuance of that suspension, the authority competent to place him under suspension may, for reasons to be recorded by him in writing, direct that the Government servant shall continue to be under suspension until the termination of all or any of such proceedings. (c) An order of suspension made or deemed to have been made under this rule may at any time be modified or revoked by the authority which made or is deemed to have made the order or by any authority to which that authority is subordinate.

Rule 10(5)

1. **10(5)(a) — the default**
   Suspension chalti rehti hai jab tak competent authority ise badle ya revoke na kare. Apne aap khatam nahi hoti.

2. **10(5)(b) — the second case**
   Suspension ke dauraan naya disciplinary proceeding shuru ho toh authority **likhit kaaran** de kar keh sakti hai ki suspension saare ya kuch proceedings khatam hone tak chalta rahega.

3. **10(5)(c) — the escape hatch**
   Jis authority ne order diya — **ya usse upar wali koi bhi** — apne aap kabhi bhi ise badal ya revoke kar sakti hai.

! **YAAD RAKHIYE**
Representation ke liye kaam ki line: “Rule 10(5)(c) ke tahat yeh order dene wali authority ya usse upar wali authority kabhi bhi revoke kar sakti hai; merits par review ki prarthana hai.”

Rule 10(6) The 90-day review and the Review Committee

RULE KYA KEHTA HAI

An order of suspension made or deemed to have been made under this rule shall be reviewed by the authority which is competent to modify or revoke the suspension, before expiry of ninety days from the effective date of suspension, on the recommendation of the Review Committee constituted for the purpose and pass orders either extending or revoking the suspension. Subsequent reviews shall be made before expiry of the extended period of suspension. Extension of suspension shall not be for a period exceeding one hundred and eighty days at a time.

Rule 10(6)



Stage	Deadline	Who acts
First review	Before 90 days from the effective date of suspension	Competent authority, on the Review Committee's recommendation
Order on review	Extend (up to 180 days at a time) or revoke	Competent authority — a speaking order
Every later review	Before the expiry of the extended period	Same cycle, every 180 days

Review Committee ki rachna (DoPT instructions): jahan President disciplinary ya appellate authority **nahi** hain, wahan Committee mein Secretary (ya barabar), disciplinary authority aur barabar ya senior ek

aur officer; jahan **President appellate authority** hain, wahan disciplinary authority aur barabar/senior do officer; jahan **President disciplinary authority** hain, wahan suspended officer se senior teen officer.

DHYAN SE
Suspension badhana **formality nahi** hai. Yeh reasoned decision hona chahiye ki suspension abhi bhi zaroori hai — Supreme Court ke **Ajay Kumar Choudhary** wale cases review par zor dete hain aur bina justification teen mahine se zyada suspension ko pasand nahi karte.

Rule 10(7) The 90-day limit — and the deemed-suspension exception

RULE KYA KEHTA HAI

An order of suspension made or deemed to have been made under sub-rule (1) or (2) of this rule shall not be valid after a period of ninety days unless it is extended after review, for a further period before the expiry of ninety days.

Rule 10(7)

PROVISO

Provided that no such review of suspension shall be necessary in the case of deemed suspension under sub-rule (2), if the Government servant continues to be under suspension at the time of completion of ninety days of suspension and the ninety days period in such case will count from the date the Government servant detained in custody is released from detention or the date on which the fact of his release from detention is intimated to his appointing authority, whichever is later.

Proviso to Rule 10(7)

VALID REVIEW KA ASAR

- Suspension 90 din ke baad bhi chalti hai.
- Nayi extension ek baar mein 180 din.
- Subsistence allowance chalta rehta hai (FR 53).

Consequence of no review at all

- 90 din ke baad suspension **valid nahi rehti**.
- Reinstatement apne aap.
- Us period ko duty maana ja sakta hai.

YAAD RAKHIYE
Memory hook — 48 · 90 · 180. Deemed suspension 48 ghante; pehla review 90 din; har extension 180 din. Custody wale ke liye 90 din tab shuru hote hain jab woh chhoote ya release ki soochna mile — jo baad mein aaye.

Rule 10 — the practical kit Subsistence allowance, headquarters, resignation

Rule 10 paise ke baare mein chup hai. Paisa **Fundamental Rule 53** mein hai, jahan har suspended employee ko dekhna chahiye:

Period	Subsistence allowance	Condition
First 3 months	50% of pay (plus DA and, subject to conditions, other allowances)	Automatic on suspension
Beyond 3 months — delay not attributable to you	May be raised to **75%**	On a non-employment certificate and a written request
Beyond 3 months — delay attributable to you	May be reduced to **25%**	For reasons recorded in writing
Earned leave / duty	Subsistence allowance stops if you take leave	Request in writing

Headquarters
Suspended employee competent authority ki ijazat ke bina headquarters nahi chhod sakta.

No "duty" during suspension
Salary nahi, sirf subsistence allowance. Leave account se kuch nahi katta jab tak order na ho.

Resignation
DoPT instruction: suspended employee ka resignation aam taur par **nahi lena** — public interest aur pending case dekhiye.

Retirement
Suspension retirement nahi rokta, par department pension/gratuity ki karyawahi rok sakta hai (Rule 9, CCS (Pension) Rules).

Promotion
Suspended employee ko promotion/selection mein nahi dekha jaata; selection chal rahi ho toh case sealed cover mein rakha jaata hai.

Passport / foreign travel
Clearance chahiye; criminal case ya suspension aam taur par ise rokta hai.

NOTE
Suspension set aside hone ka matlab apne aap yeh nahi ki period duty maana jayega. Woh baad mein FR 54 ke tahat, case khatam hone par, ek reasoned order se tay hota hai. Service law mein sabse zyada ladai isi point par hoti hai.

Rule 10 ek line mein: teen grounds, 48 ghante, 90 din, 180 din ki extension — aur kabhi penalty nahi.

Rule 10 — case law

Five principles courts keep repeating

1. **Suspension punishment nahi** — ise penalty dene ka shortcut nahi bana sakte (aur inquiry aage na badhe toh lambi suspension par court dakhal de sakti hai).
2. **Review zaroori** — 90 din ke baad bina soch-samajh ke mechanical extension galat hai (Ajay Kumar Choudhary v. Union of India, 2015).
3. **Reason to believe maayne rakhta hai** — order se dikhna chahiye ki authority ne Rule 10(1) ke grounds par dimaag lagaya.
4. **Retirement ke baad / retirement ke din suspension** nahi, sirf pension rules bachane ke liye.
5. **Reinstatement se case khatam nahi hota** — inquiry chalti rah sakti hai; par suspension naye order ke bina wapas nahi aa sakti.

DHYAN SE
Aisa suspension order jo Rule 10(1) mein na ho — jaise "department ki sharmindagi se bachne ke liye" — vulnerable hai. Sabse safe order clause quote karta hai: "(a) disciplinary proceedings are contemplated" ya "(b) a case in respect of a criminal offence is under investigation".



BABU-JI KEHTE HAIN

Suspension wahi rule hai jisse sabse zyada dar lagta hai aur sabse kam samajh aata hai. Yeh punishment nahi, iski shelf life hai, aur upar wali authority kabhi bhi revoke kar sakti hai.

THREE CLOCKS
48 ghante · 90 din · 180 din — poora Rule 10 itna hi hai.

ONE SENTENCE
"Kindly review the suspension under Rule 10(5)(c) and Rule 10(6)."

PART V — PENALTIES & AUTHORITIES

RULES 11 TO 13

9 penalties · 2 provisos · 9 explanations · 3 sub-rules of Rule 12 · Rule 13

Rule 11 punishments ka menu hai. Rule 12 batata hai kaun de sakta hai. Rule 13 batata hai kaun case shuru kar sakta hai. Part VI ka sab kuch sirf in teen rules ki **procedure** hai.



Censure penalty hai. Note sheet par likha “threat of censure” nahi. Farak disciplinary authority ke signature se hota hai.

Rule 11 The nine penalties

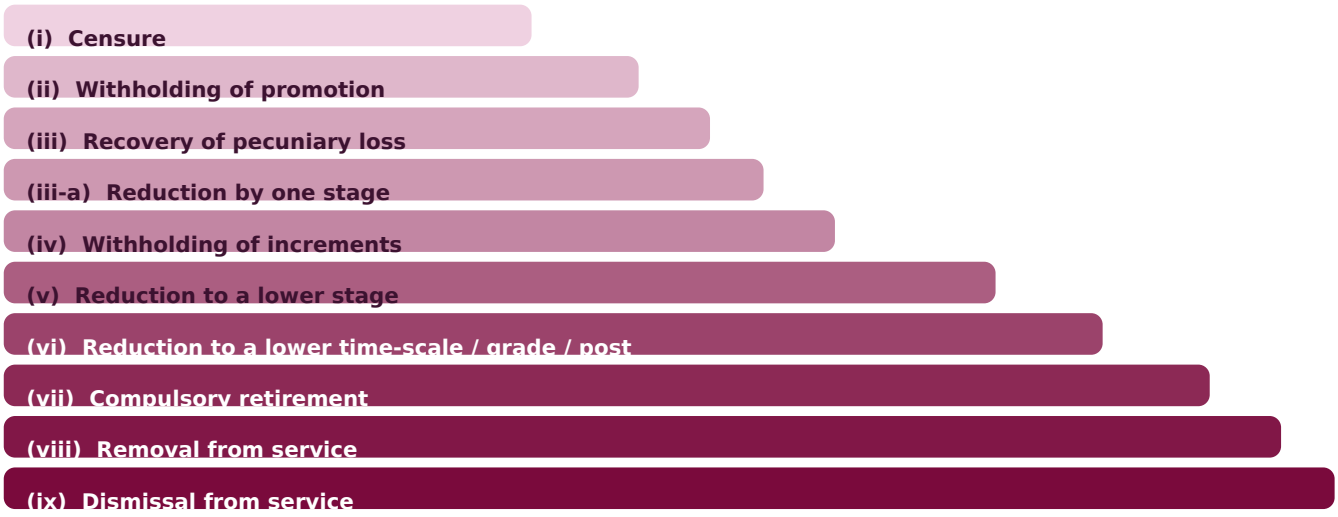
RULE KYA KEHTA HAI

The following penalties may, for good and sufficient reasons and as hereinafter provided, be imposed on a Government servant, namely: —

Rule 11

Nau penalties ko **seedhi** ki tarah padhiye — neeche written reprimand, upar naukri ka nuksan. Jitni gehri severity, utna gehra rang:

LESS SEVERE — MORE SEVERE



MINOR PENALTIES — (i) SE (iv)

- (i) **Censure**.
- (ii) **Promotion rokhna**.
- (iii) **Recovery** — laparwahi ya order todne se hue poore ya kuch nuksan ki bharpaayi pay se.
- (iii-a) **Reduction to a lower stage** — time-scale mein ek stage neeche, **teen saal tak**, cumulative effect ke bina aur pension par asar ke bina.
- (iv) **Increment rokhna**.

Major penalties — clauses (v) to (ix)

- (v) **Reduction to a lower stage** — time-scale mein ek tay period ke liye, us period ke increments aur aage ke increments ke nirdesh ke saath.
- (vi) **Reduction to a lower time-scale, grade, post ya Service** — tay period ke liye, promotion par rok, aur increment aur seniority ke nirdesh ke saath.
- (vii) **Compulsory retirement**.
- (viii) **Removal** from service — aage Government naukri ke liye disqualification nahi.
- (ix) **Dismissal** — aam taur par aage Government naukri ke liye disqualification.

NOTE
Yeh baantna maayne rakhta hai. Minor penalties Rule 16 ke chhote procedure se lagti hain; major penalties ke liye Rules 14 aur 15 ki poori machinery — charge sheet, inquiry, evidence, report, representation aur speaking order.

Rule 11(v) and 11(vi) — The two "reduction" penalties — read with care

	Clause (v) — reduction to a lower stage	Clause (vi) — reduction to a lower time-scale, grade, post or Service
What falls	A **stage** within the same time-scale of pay	A **whole** time-scale, grade, post or Service
Period	A specified period	A specified period
Increments	Directions whether increments accrue during the period, and whether future increments are postponed	Directions whether, on promotion after the period, the reduction postpones future increments and to what extent
Promotion	Not barred as such	**Barred** during the period
Seniority	Generally unaffected beyond the pay stage	Directions whether the original seniority in the higher time-scale/grade is regained

DHYAN SE
Clause (iii-a) — **minor** penalty, ek stage, teen saal tak — ko clause (v) se na milaiye, jo **major** penalty hai. (iii-a) kabhi cumulative nahi hoti aur pension ko chhoo hi nahi sakti.

Rule 11 — Provisos — The two provisos: mandatory dismissal and the exceptional escape

PROVISO
Provided that, in every case in which the charge of possession of assets disproportionate to known sources of income or the charge of acceptance from any person of any gratification, other than legal remuneration, as a motive or reward for doing or forbearing to do any official act is established, the penalty mentioned in clause (viii) or clause (ix) shall be imposed:

First proviso to Rule 11

PROVISO
Provided further that in any exceptional case and for special reasons recorded in writing, any other penalty may be imposed.

Second proviso to Rule 11

CHARGE SAABIT HO TO

- Aay se zyada sampatti rakhna.
- Legal remuneration ke alawa koi bhi cheez inaam ya rashish ke taur par lena.
- → Penalty **sirf** removal (viii) ya dismissal (ix) ho sakti hai.

Unless it is exceptional

- Doosra proviso koi bhi doosri penalty lene deta hai.
- Par **khaas kaaran likhna zaroori** hai.
- Kaaran nahi likhe = order defective.

EXAMPLE
Ek clerk par file pass karne ke liye ₹20,000 lene ka aarop saabit hota hai. DA ko removal ya dismissal hi deni hai; agar daya dikha kar pay reduction dena chahe, toh likhna padega ki yeh "exceptional case" kyun hai — aur appeal mein defend karna padega.

YAAD RAKHIYE
Pehle proviso ke do charges classic **vigilance** charges hain. Baaki sab — absence, insubordination, laparwahi — mein penalty chunne ki azadi disciplinary authority ko hai, proportionality ke andar.

Rule 11 — Explanation — Nine things that are NOT penalties

Explanation mein nau aise kaam hain jo punishment lagte hain par in Rules mein **penalty nahi**. Penalty na hone se inquiry nahi chahiye — aur Rule 23 ki appeal bhi nahi banti.

No.	Not a penalty
(i)	Withholding of increments for **failure to pass a departmental examination** under the rules governing the Service.
(ii)	Stoppage at the **efficiency bar** for unfitness to cross it.
(iii)	**Non-promotion** after due consideration, whether substantive or officiating.
(iv)	**Reversion** of an officiating person to a lower Service, grade or post for unsuitability or on administrative grounds unconnected with conduct.
(v)	**Reversion of a probationer** to the permanent Service during or at the end of probation, per the terms of appointment.
(vi)	**Replacement** of a borrowed officer's services with the lending authority.
(vii)	**Compulsory retirement** on superannuation under the retirement rules.
(viii)	**Termination** of (a) a probationer per the terms of appointment; (b) a temporary employee under Rule 5(1) of the CCS (Temporary Service) Rules, 1965; (c) an employee under an agreement per its terms.
(ix)	**Compensation** awarded on the recommendation of the Complaints Committee under the sexual harassment provisions (Rule 3-C, CCS (Conduct) Rules, 1964).

DHYAN SE
Explanation (iii), (iv) aur (viii) Rules ke **sabse zyada galat istemaal** wale hisse hain. Temporary Service Rules ke Rule 5(1) ke tahat “termination simpliciter” tabhi valid hai jab woh punishment ka bhes na ho. Agar order misconduct par bana hai, toh woh penalty hai aur poora inquiry chahiye — Radhey Shyam Gupta / Pavanendra Narayan Verma wale cases.

Rule 12(1) and 12(2) — Who may impose penalties

RULE KYA KEHTA HAI

(1) The President may impose any of the penalties specified in Rule 11 on any Government servant. (2) Without prejudice to the provisions of sub-rule (1), but subject to the provisions of sub-rule (4), any of the penalties specified in Rule 11 may be imposed on — (a) a member of a Central Civil Service other than the General Central Service, by the appointing authority or the authority specified in the Schedule in this behalf or by any other authority empowered in this behalf by a general or special order of the President; (b) a person appointed to a Central Civil Post included in the General Central Service, by the authority specified in this behalf by a general or special order of the President or, where no such order has been made, by the appointing authority or the authority specified in the Schedule in this behalf.

Rule 12(1) and (2)

ORGANISED CENTRAL CIVIL SERVICE

- **Appointing authority**.
- **Schedule** mein naam wali authority.
- President ke order se **empowered** koi bhi authority.
- Sab Rule 12(4) ke adheen.

GENERAL CENTRAL SERVICE POST

- President ke **general ya special order** mein naam wali authority.
- Aisa order na ho — toh **appointing authority**.
- Ya **Schedule** mein naam wali authority.
- Sab Rule 12(4) ke adheen.

Rule 12(3) The Secretary's power over Group C and Group D

RULE KYA KEHTA HAI

Subject to the provisions of sub-rule (4), the power to impose any of the penalties specified in Rule 11 may also be exercised, in the case of a member of a Central Civil Service, Group 'C' (other than the Central Secretariat Clerical Service), or a Central Civil Service, Group 'D' — (a) if he is serving in a Ministry or Department of the Government of India, by the Secretary to the Government of India in that Ministry or Department; or (b) if he is serving in any office, by the head of that office, except where the head of that office is lower in rank than the authority competent to impose the penalty under sub-rule (2).

Rule 12(3)

Yeh **parallel power** hai, substitute nahi. Isse Ministry ka Secretary ya field office ka head Group 'C' aur Group 'D' staff par Rule 11 ki koi bhi penalty laga sakta hai — bas head of office Rule 12(2) ki competent authority se junior na ho.

YAAD RAKHIYE

Do carve-out yaad rakhiye: **Central Secretariat Clerical Service** Rule 12(3) se bahar hai; aur **Defence civilians** Schedule ke Part V mein aate hain.

Rule 12(4)(a) No major penalty by a subordinate authority

RULE KYA KEHTA HAI

Notwithstanding anything contained in this rule — (a) except where the penalty specified in clause (v) or clause (vi) of Rule 11 is imposed by the Comptroller and Auditor-General on a member of the Indian Audit and Accounts Service, an Assistant Accountant General or a member of General Central Service Group 'C' holding a Central Civil post in the Indian Audit and Accounts Department (other than a regular member of the Indian Audit and Accounts Service), no penalty specified in clause (v) to (ix) of that rule shall be imposed by any authority subordinate to the appointing authority.

Rule 12(4)(a), as substituted by G.S.R. 21(E), 12 January 2026

NAYA / LATEST

What the 12 January 2026 amendment did. It aligns Rule 12(4)(a) with the new Rule 10(1) proviso: the exception for the **CAG** now expressly covers a **member of General Central Service Group 'C' holding a Central Civil post in the IA&AD**, in addition to IA&AS members and Assistant Accountant Generals. Earlier the exception mentioned only IA&AS members and Assistant Accountant Generals — which created doubt about Group 'C' IA&AD staff.

DHYAN SE

Yeh clause **Article 311(1)** ki goonj hai: appointing authority se neeche wali authority dismissal, removal ya reduction in rank nahi kar sakti. Junior officer ne dismissal order sign kiya toh order girta hai — chahe evidence kitna hi achha ho.

Rule 12(4)(b) and 12(4)(c) Borrowed officers and LBSNAA probationers

RULE KYA KEHTA HAI

(b) where a Government servant who is a member of a Service other than the General Central Service or who has been substantively appointed to any civil post in the General Central Service, is temporarily appointed to any other Service or post, the authority competent to impose on such Government servant any of the penalties specified in clauses (v) to (ix) of Rule 11 shall not impose any such penalties unless it has consulted such authority, not being an authority subordinate to it, as would have been competent under sub-rule (2) to impose on the Government servant any of the said penalties had he not been

Rule 12(4)(b)

RULE KYA KEHTA HAI (contd.)

appointed to such other Service or post;

RULE KYA KEHTA HAI

(c) in respect of a probationer undergoing training at the Lal Bahadur Shastri National Academy of Administration, the Director of the said Academy shall be the authority competent to impose on such probationer any of the penalties specified in clauses (i) and (iii) of Rule 11 after observing the procedure laid down in Rule 16.

Rule 12(4)(c)

Explanation I

Clause (c) ke liye “Probationer” ka matlab: probation par Central Civil Service mein appoint kiya gaya vyakti.

Explanation II

Agle higher Group ki Service ya post par promote hua Government servant (probation par ya temporary) Rule 12 ke liye usi higher Group ka maana jaata hai.

e

EXAMPLE

Ek Group 'B' officer ad hoc Group 'A' post par promote hota hai. Rule 12 ke liye woh Group 'A' maana jaayega — isliye Group 'B' ki competent authority use dismiss nahi kar sakti. Explanation II yahi loophole band karta hai.

Rule 13 Who can institute proceedings

RULE KYA KEHTA HAI

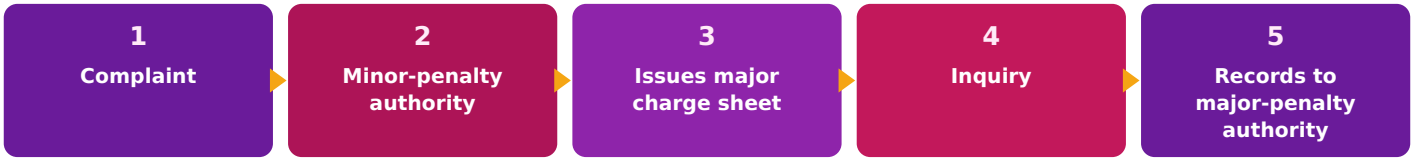
(1) The President or any other authority empowered by him by general or special order may — (a) institute disciplinary proceedings against any Government servant; (b) direct a disciplinary authority to institute disciplinary proceedings against any Government servant on whom that disciplinary authority is competent to impose under these rules any of the penalties specified in Rule 11.

Rule 13(1)

RULE KYA KEHTA HAI

(2) A disciplinary authority competent under these rules to impose any of the penalties specified in clauses (i) to (iv) of Rule 11 may institute disciplinary proceedings against any Government servant for the imposition of any of the penalties specified in clauses (v) to (ix) of Rule 11 notwithstanding that such disciplinary authority is not competent under these rules to impose any of the latter penalties.

Rule 13(2)



Rule 13(2) hi system chalata hai: **minor-penalty authority major-penalty case shuru kar sakti hai**. Inquiry khatam aur finding major penalty ki taraf ho, toh record Rule 14(21)(a) ke tahat us authority ke paas jaata hai.

!

YAAD RAKHIYE

Exam hook: Rule 12 = penalty lagane ki power. Rule 13 = case shuru karne ki power. Dono ek hi haath mein hona zaroori nahi — aur aksar nahi hote.

Part V ek line mein: nau penalties, do proviso, nau explanations, teen rules — aur peeche khade Article 311.

PART VI — PROCEDURE

RULES 14 TO 21

Major penalties · inquiry report · minor penalties · communication · common proceedings · special procedure · borrowed office

Part VI wahi hai jahan case jeete ya haarte hain. Tribunal jo penalties quash karte hain, unme se zyadatar is Part ki **procedural** galti se girte hain — isliye nahi ki officer nirdosh tha.



Rule 14 mein 24 sub-rules hain. Ise order mein kariye, har step file par likhiye — order appeal mein bach jayega.

The big picture — Two roads to a penalty

1 Charge sheet → 2 Inquiry (Rule 14) → 3 Report (14/15) → 4 Penalty order

	Major penalties — clauses (v) to (ix)	Minor penalties — clauses (i) to (iv)
Governing rules	Rules 14 and 15	Rule 16
Charge sheet	Mandatory — articles of charge, imputations, documents, witnesses	Written intimation of the proposal and the imputations
Oral inquiry	Mandatory	Only if the DA thinks it necessary; **mandatory** for certain increment penalties (Rule 16(1-A))
Defence assistant	Yes (Rule 14(8))	Yes, if an inquiry is held
Inquiry report	Yes	Only if an inquiry was held
UPSC advice	Where necessary	Where necessary
Personal hearing	Through the inquiry	Representation only, unless an inquiry is ordered

DHYAN SE
Sabse aam jaanleva galti: Rule 16 ka rasta le kar major penalty lagana. Penalty clause (v) se (ix) mein aati hai toh poora Rule 14 inquiry zaroori hai — “facts toh saaf hain” ka koi shortcut nahi.

Rule 14(1) — No major penalty without an inquiry

RULE KYA KEHTA HAI

No order imposing any of the penalties specified in clauses (v) to (ix) of Rule 11 shall be made except after an inquiry held, as far as may be, in the manner provided in this rule and Rule 15, or in the manner provided by the Public Servants (Inquiries) Act, 1850, where such inquiry is held under that Act.

Rule 14(1)

“as far as may be”
Substantial compliance kaafi hai — harmless irregularity inquiry ko nahi girati. Par jis breach se prejudice ho, woh girati hai.

The 1850 Act route
Bade cases mein Public Servants (Inquiries) Act, 1850 ke tahat formal commission of inquiry bhi use ho sakta hai.

Consequence of breach
Penalty order void ho jaata hai — sirf irregular nahi.

Rule 14(2) Who holds the inquiry

RULE KYA KEHTA HAI

Whenever the disciplinary authority is of the opinion that there are grounds for inquiring into the truth of any imputation of misconduct or misbehaviour against a Government servant, it may itself inquire into, or appoint under this rule or under the provisions of the Public Servants (Inquiries) Act, 1850, as the case may be, an authority to inquire into the truth thereof.

Rule 14(2)

PROVISO

Provided that where there is a complaint of sexual harassment within the meaning of Rule 3-C of the Central Civil Services (Conduct) Rules, 1964, the Complaints Committee established in each Ministry or Department or Office for inquiring into such complaints shall be deemed to be the inquiring authority appointed by the disciplinary authority for the purpose of these Rules.

Proviso to Rule 14(2)

EXPLANATION

Explanation — (i) Where the disciplinary authority itself holds the inquiry, any reference in sub-rule (7) to sub-rule (20) and in sub-rule (22) to the inquiring authority shall be construed as a reference to the disciplinary authority. (ii) Where the disciplinary authority appoints a retired Government servant as inquiring authority, any reference in sub-rule (7) to sub-rule (20) and in sub-rule (22) shall include such authority.

Explanation to Rule 14(2)

IO KAUN HO SAKTA HAI

- Disciplinary authority khud.
- Is kaam ke liye appoint kiya gaya doosra serving officer.
- **Retired** Government servant (Explanation (ii)).
- Sexual harassment ke cases mein Complaints Committee (proviso).

Who should not be

- Presenting Officer.
- Case ka witness.
- PO ke subordinate, ya jiska personal interest ho.
- Woh officer jisne note par pehle hi faisla likh diya ho.

Rule 14(3) Drawing up the charge sheet

RULE KYA KEHTA HAI

Where it is proposed to hold an inquiry against a Government servant under this rule and Rule 15, the disciplinary authority shall draw up or cause to be drawn up — (i) the substance of the imputations of misconduct or misbehaviour into definite and distinct articles of charge; (ii) a statement of the imputations of misconduct or misbehaviour in support of each article of charge, which shall contain — (a) a statement of all relevant facts including any admission or confession made by the Government servant; (b) a list of documents by which, and a list of witnesses by whom, the articles of charge are proposed to be sustained.

Rule 14(3)

Ingredient	What it must contain	Why it matters
Articles of charge	Definite and distinct; one allegation per article; date, place, act, rule broken	Vagueness = no proper opportunity to defend
Statement of imputations	All relevant facts, including any **admission or confession**	Tells the officer exactly what he must meet
List of documents	Each document by which the charge is to be proved	Enables inspection and a real defence
List of witnesses	Each witness by whom the charge is to be proved	No surprise witnesses later (Rule 14(15) has limits)

e **EXAMPLE**
Galat article: “The officer committed irregularities in purchase.” Sahi article: “That the said Shri X, while functioning as Assistant Director (Stores) during 01.04.2023 to 31.07.2023, awarded supply order No. 17 dated 12.05.2023 to M/s Y without inviting quotations, in violation of Rule 149 of the GFR, 2017.”

! **YAAD RAKHIYE**
Charge sheet test: koi reasonable officer article padh kar bata sakta hai ki aarop kya hai, kab, kahan aur kaunsa rule toota? Nahi — toh article kharab hai.

Rule 14(4) Delivery of the charge sheet — 15 days, extendable to 45

RULE KYA KEHTA HAI

(a) The Disciplinary Authority shall deliver or cause to be delivered to the Government servant a copy of the articles of charge, the statement of the imputations of misconduct or misbehaviour and a list of documents and witnesses by which each article of charge is proposed to be sustained. (b) On receipt of the articles of charge, the Government servant shall be required to submit his written statement of defence, if he so desires, and also state whether he desires to be heard in person, within a period of fifteen days, which may be further extended for a period not exceeding fifteen days at a time for reasons to be recorded in writing by the Disciplinary Authority or any other Authority authorised by the Disciplinary Authority on his behalf:

Rule 14(4)(a) and (b)

PROVISO

Provided that under no circumstances, the extension of time for filing written statement of defence shall exceed forty-five days from the date of receipt of articles of charge.

Proviso to Rule 14(4)(b)

15	15	45
days to reply	days per extension	days — absolute outer limit

! **DHYAN SE**
45 din ki ceiling **absolute** hai. DA isse aage nahi ja sakta. Par agar officer jawab hi na de, inquiry chalti hai (Rule 14(5)(b)) — chuppi defence nahi hai.

Rule 14(5) After the reply: inquire, or appoint an Inquiring Authority

RULE KYA KEHTA HAI

(a) On receipt of the written statement of defence, the disciplinary authority may itself inquire into such of the articles of charge as are not admitted, or, if it considers it necessary so to do, appoint, under sub-rule (2), an inquiring authority for the purpose, and where all the articles of charge have been admitted by the Government servant in his written statement of defence, the disciplinary authority shall record its findings on each charge after taking such evidence as it may think fit and shall act in the manner laid down in Rule 15.

Rule 14(5)(a)

RULE KYA KEHTA HAI

(b) If no written statement of defence is submitted by the Government servant, the disciplinary authority may itself inquire into the articles of charge, or may, if it considers it necessary to do so, appoint, under sub-rule (2), an inquiring authority for the purpose.

Rule 14(5)(b)

RULE KYA KEHTA HAI

(c) Where the disciplinary authority itself inquires into any article of charge or appoints an inquiring authority for holding an inquiry into such charge, it may, by an order, appoint a Government servant or a legal practitioner, to be known as the "Presenting Officer", to present on its behalf the case in support of the articles of charge.

Rule 14(5)(c)

EXPLANATION

Explanation — For the purposes of this rule, the expression 'Government servant' includes a person who has ceased to be in Government service.

Explanation to Rule 14(5)

Situation after the charge sheet	What the DA does
Some charges admitted, some denied	Inquire into the denied charges only; admitted charges stand
All charges admitted in writing	Record findings on each charge after taking such evidence as it thinks fit; then Rule 15
No written statement at all	Inquire itself, or appoint an Inquiring Authority
Reply received and charges denied	Inquire itself, or appoint an Inquiring Authority; appoint a Presenting Officer

NOTE

Explanation **retired officer** ko Presenting Officer banane deta hai — useful jab department ke apne officers witnesses hain ya charged officer se junior hain.

Rule 14(6) What the DA sends to the Inquiring Authority

RULE KYA KEHTA HAI

The disciplinary authority shall, where it is not the inquiring authority, forward to the inquiring authority — (i) a copy of the articles of charge and the statement of the imputations of misconduct or misbehaviour; (ii) a copy of the written statement of defence, if any, submitted by the Government servant; (iii) a copy of the statements of witnesses, if any, referred to in sub-rule (3); (iv) evidence proving the delivery of the documents referred to in sub-rule (3) to the Government servant; and (v) a copy of the order appointing the Presenting Officer.

Rule 14(6)

YAAD RAKHIYE
Item (iv) — **proof of delivery** — file ka chhupa hero hai. Iske bina officer baad mein keh sakta hai ki charge sheet mili hi nahi, aur ex parte inquiry gir jaati hai.

Rule 14(7) First appearance — 10 working days

RULE KYA KEHTA HAI

The Government servant shall appear in person before the inquiring authority on such day and at such time within ten working days from the date of receipt by the inquiring authority of the articles of charge and the statement of the imputations of misconduct or misbehaviour, as the inquiring authority may, by notice in writing, specify, in this behalf, or within such further time, not exceeding ten days, as the inquiring authority may allow.

Rule 14(7)

10	10	30
working days for first appearance	more days on request	days max adjournment under 14(11)

Aasaan shabdon mein: Inquiring Authority charge papers milne ke **10 working days** ke andar date deti hai. Zyada time chahiye toh **10 din aur** mil sakte hain. Na aaye toh sub-rule (11) lagta hai.

Rule 14(8) Your Defence Assistant

RULE KYA KEHTA HAI

(a) The Government servant may take the assistance of any other Government servant posted in any office either at his headquarters or at the place where the inquiry is held, to present the case on his behalf, but may not engage a legal practitioner for the purpose, unless the Presenting Officer appointed by the disciplinary authority is a legal practitioner, or the disciplinary authority, having regard to the circumstances of the case, so permits.

Rule 14(8)(a)

PROVISO

Provided that the Government servant may take the assistance of any other Government servant posted at any other station, if the inquiring authority having regard to the circumstances of the case, and for reasons to be recorded in writing, so permits.

Proviso to Rule 14(8)(a)

NOTE

Note — The Government servant shall not take the assistance of any other Government servant who has three pending disciplinary cases on hand in which he has to give assistance.

Note to Rule 14(8)(a)

RULE KYA KEHTA HAI

(b) The Government servant may also take the assistance of a retired Government servant to present the case on his behalf, subject to such conditions as may be specified by the President from time to time by general or special order in this behalf.

Rule 14(8)(b)

Who can assist you	Condition
A serving Government servant at your headquarters or at the place of inquiry	Freely available
A serving Government servant at another station	Only if the Inquiring Authority permits, for recorded reasons
A retired Government servant	Permitted by Rule 14(8)(b), subject to the President's conditions
A **legal practitioner**	Only if the Presenting Officer is a legal practitioner, **or** the DA permits in view of the circumstances
A colleague who is already assisting in **3** pending cases	Not permitted

DHYAN SE
Defence Assistant na dena tab jaanleva ho sakta hai jab prejudice ho. Par **lawyer ka absolute right nahi** — rule kehta hai “no legal practitioner, unless...”. Likhit mein, jaldi maangiye, aur refusal record karwaiye.

Rule 14(9) and 14(10) The plea

RULE KYA KEHTA HAI
(9) If the Government servant who has not admitted any of the articles of charge in his written statement of defence or has not submitted any written statement of defence, appears before the inquiring authority, such authority shall ask him whether he is guilty or has any defence to make and if he pleads guilty to any of the articles of charge, the inquiring authority shall record the plea, sign the record and obtain the signature of the Government servant thereon.

Rule 14(9)

RULE KYA KEHTA HAI
(10) The inquiring authority shall return a finding of guilt in respect of those articles of charge to which the Government servant pleads guilty.

Rule 14(10)

NOTE
Guilt ki plea **khud ki aur saaf** honi chahiye. Officer kahe “file par sign kiya, par pata nahi tha” — yeh guilt ki plea nahi, ise denial likhiye.

Rule 14(11) If you do not appear — the ex parte drill

RULE KYA KEHTA HAI
The inquiring authority shall, if the Government servant fails to appear within the specified time or refuses or omits to plead, require the Presenting Officer to produce the evidence by which he proposes to prove the articles of charge, and shall adjourn the case to a later date not exceeding thirty days, after recording an order that the Government servant may, for the purpose of preparing his defence — (i) inspect within five days of the order or within such further time not exceeding five days as the inquiring authority may allow, the documents specified in the list referred to in sub-rule (3); (ii) submit a list of witnesses to be examined on his behalf; (iii) give a notice within ten days of the order or within such further time not exceeding ten days as the inquiring authority may allow, for the discovery or production of any documents which are in the possession of Government but not mentioned in the list referred to in sub-rule (3).

Rule 14(11)

NOTE

Note 1 — If the Government servant applies orally or in writing for the supply of copies of the statements of witnesses mentioned in the list referred to in sub-rule (3), the inquiring authority shall furnish him with such copies as early as possible and in any case not later than three days before the commencement of the examination of the witnesses on behalf of the disciplinary authority.

Note 1 to Rule 14(11)

NOTE

Note 2 — The Government servant shall indicate the relevance of the documents required by him to be discovered or produced by the Government.

Note 2 to Rule 14(11)

5	10	3
days to inspect documents	days to seek new documents	days before witness copies

Is sub-rule ko **ex parte file ka chaar-point checklist** samajhiye: (1) Presenting Officer se evidence maangiye; (2) inspection aur Defence witnesses ki list ka order likhiye; (3) **30 din ke andar** ki date par adjourn kariye; (4) har witness se kam se kam **3 din pehle** witness statements ki copies dijiye.

Rule 14(12) and 14(13) Getting documents from Government custody

RULE KYA KEHTA HAI

(12) The inquiring authority shall, on receipt of the notice for the discovery or production of documents, forward the same or copies thereof to the authority in whose custody or possession the documents are kept, with a requisition for the production of the documents by such date as may be specified in such requisition: Provided that the inquiring authority may, for reasons to be recorded by it in writing, refuse to requisition such of the documents as are, in its opinion, not relevant to the case.

Rule 14(12)

RULE KYA KEHTA HAI

(13) On receipt of the requisition referred to in sub-rule (12), every authority having the custody or possession of the requisitioned documents shall produce the same or issue a non-availability certificate before the Inquiring Authority within one month of the receipt of such requisition: Provided that if the authority having the custody or possession of the requisitioned documents is satisfied for reasons to be recorded by it in writing that the production of all or any of such documents would be against the public interest or security of the State, it shall inform the Inquiring Authority accordingly and the Inquiring Authority shall, on being so informed, communicate the information to the Government servant and withdraw the requisition made by it for the production or discovery of such documents.

Rule 14(13)

Step	Time limit	Who
Inquiring Authority sends requisition to the custodian	—	Inquiring Authority
Custodian produces the document **or** issues a non-availability certificate	Within **one month**	Custodian of the document
Claim of public interest / State security	Reasons in writing; IO informs the officer and withdraws the requisition	Custodian + Inquiring Authority

DHYAN SE
Public interest immunity mil sakti hai, par reasoned honi chahiye. Sirf "not in public interest" likhna kaafi nahi — aur agar document aapko dikhaye bina use kiya gaya, toh inquiry unfair hai (S.K. Kapoor principle).

Rule 14(14) Recording the evidence

RULE KYA KEHTA HAI

On the date fixed for the inquiry, the oral and documentary evidence by which the articles of charge are proposed to be proved shall be produced by or on behalf of the disciplinary authority. The witnesses shall be examined by or on behalf of the Presenting Officer and may be cross-examined by or on behalf of the Government servant. The Presenting Officer shall be entitled to re-examine the witnesses on any points on which they have been cross-examined, but not on any new matter, without the leave of the inquiring authority. The inquiring authority may also put such questions to the witnesses as it thinks fit.

Rule 14(14)

1 Examination-in-chief → 2 Cross-examination → 3 Re-examination → 4 Questions by IO

Aasaan shabdon mein: **Presenting Officer** department ke witnesses le aata hai; aap (ya aapka Defence Assistant) **cross-examine** karte hain; PO sirf cross-examination mein aayi baaton par **re-examine** kar sakta hai, aur naye mudde par Inquiring Authority ki ijazat se; Inquiring Authority khud bhi koi sawaal pooch sakti hai. Sab kuch record hota hai aur sign hota hai.

Rule 14(15) New evidence — only to fill a lacuna, never a gap

RULE KYA KEHTA HAI

If it shall appear necessary before the close of the case on behalf of the disciplinary authority, the inquiring authority may, in its discretion, allow the Presenting Officer to produce evidence not included in the list given to the Government servant or may itself call for new evidence or recall and re-examine any witness and in such case the Government servant shall be entitled to have, if he demands it, a copy of the list of further evidence proposed to be produced and an adjournment of the inquiry for three clear days before the production of such new evidence, exclusive of the day of adjournment and the day to which the inquiry is adjourned. The inquiring authority shall give the Government servant an opportunity of inspecting such documents before they are taken on the record. The inquiring authority may also allow the Government servant to produce new evidence, if it is of the opinion that the production of such evidence is necessary, in the interests of justice.

Rule 14(15)

NOTE

Note — New evidence shall not be permitted or called for or any witness shall not be recalled to fill up any gap in the evidence. Such evidence may be called for only when there is an inherent lacuna or defect in the evidence which has been produced originally.

Note to Rule 14(15)

DEPARTMENT KYA KAR SAKTA HAI

- Original list se bahar ka evidence laana.
- Witness ko wapas bulana aur dobara poochna.
- Sirf **inherent lacuna** theek karne ke liye — gap bharne ke liye nahi.
- Officer ko nayi list aur **3 clear din** milte hain.

The officer may also

- Naya evidence dena.
- Agar IO ko **interests of justice** ke liye zaroori lage.
- Record par aane se pehle documents dekhna.
- Achanak aaye evidence ka saamna karne ke liye time maangna.

e

EXAMPLE
PO sanction order prove karna bhool gaya. Yeh **gap** hai — Note naya evidence laane se rokta hai. Par kisi witness ka signed statement ek page par padha na jaaye, woh **inherent defect** hai — theek karne ki ijazat hai.

Rule 14(16) to 14(19) Your defence and the closing

RULE KYA KEHTA HAI

(16) When the case for the disciplinary authority is closed, the Government servant shall be required to state his defence, orally or in writing, as he may prefer. If the defence is made orally, it shall be recorded and the Government servant shall be required to sign the record. In either case, a copy of the statement of defence shall be given to the Presenting Officer, if any, appointed.

Rule 14(16)

RULE KYA KEHTA HAI

(17) The evidence on behalf of the Government servant shall then be produced. The Government servant may examine himself in his own behalf if he so prefers. The witnesses produced by the Government servant shall then be examined and shall be liable to cross-examination, re-examination and examination by the inquiring authority according to the provisions applicable to the witnesses for the disciplinary authority.

Rule 14(17)

RULE KYA KEHTA HAI

(18) The inquiring authority may, after the Government servant closes his case, and shall, if the Government servant has not examined himself, generally question him on the circumstances appearing against him in the evidence for the purpose of enabling the Government servant to explain any circumstances appearing in the evidence against him.

Rule 14(18)

RULE KYA KEHTA HAI

(19) The inquiring authority may, after the completion of the production of evidence, hear the Presenting Officer, if any, appointed, and the Government servant, or permit them to file written briefs of their respective case, if they so desire.

Rule 14(19)

1. **Close of the department's case**
   PO ka evidence poora.
2. **Defence statement**
   Oral ya written; record hota hai, sign hota hai, copy PO ko.
3. **Defence evidence**
   Aap khud aur apne witnesses examine kar sakte hain.

4 **General questioning**
Agar aapne khud examine nahi kiya toh IO ko aapse **sawaal poochne hi hain**.

5 **Arguments / written briefs**
Dono side suni jaati hai.

NOTE
Rule 14(18) routine mein chhoot jaata hai aur routine mein jaan leta hai. Supreme Court ne baar-baar kaha hai ki charged officer se circumstances par generally sawaal na poochna inquiry ko gira deta hai.

Rule 14(20) Ex parte inquiry

RULE KYA KEHTA HAI

If the Government servant to whom a copy of the articles of charge has been delivered, does not submit the written statement of defence on or before the date specified for the purpose or does not appear in person before the inquiring authority or otherwise fails or refuses to comply with the provisions of this rule, the inquiring authority may hold the inquiry ex parte.

Rule 14(20)

DHYAN SE
Ex parte **aakhri rasta** hai, suvidha nahi. Isse pehle IO ko satisfiy hona chahiye ki notice serve hua, officer ko asli mauka mila, aur default ka record hai. Service prove hone ke bina ex parte inquiry quashing ka sabse aam ground hai.

Rule 14(21) When the minor-penalty authority finds a major penalty is needed

RULE KYA KEHTA HAI

(a) Where a disciplinary authority competent to impose any of the penalties specified in clauses (i) to (iv) of Rule 11 (but not competent to impose any of the penalties specified in clauses (v) to (ix) of Rule 11), has itself inquired into or caused to be inquired into the articles of any charge and that authority, having regard to its own findings or having regard to its decision on any of the findings of any inquiring authority appointed by it, is of the opinion that the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, that authority shall forward the records of the inquiry to such disciplinary authority as is competent to impose the last mentioned penalties.

Rule 14(21)(a)

RULE KYA KEHTA HAI

(b) The disciplinary authority to which the records are so forwarded may act on the evidence on the record or may, if it is of the opinion that further examination of any of the witnesses is necessary in the interests of justice, recall the witness and examine, cross-examine and re-examine the witness and may impose on the Government servant such penalty as it may deem fit in accordance with these Rules.

Rule 14(21)(b)

YAAD RAKHIYE
Yeh Rule 13(2) (minor-penalty authority major case shuru kar sakti hai) aur Rule 15 (competent authority khatam karti hai) ke beech ka pul hai. Report aane ke baad bhi authority ko Rule 15(2) ke tahat officer ko report aur 15 din **dene hi honge**.

Rule 14(22) Change of Inquiring Authority

RULE KYA KEHTA HAI

Whenever any inquiring authority, after having heard and recorded the whole or any part of the evidence in an inquiry ceases to exercise jurisdiction therein, and is succeeded by another inquiring authority which has, and which exercises, such jurisdiction, the inquiring authority so succeeding may act on the evidence so recorded by its predecessor, or partly recorded by its predecessor and partly recorded by itself: Provided that if the succeeding inquiring authority is of the opinion that further examination of any of the witnesses whose evidence has already been recorded is necessary in the interests of justice, it may recall, examine, cross-examine and re-examine any such witnesses as hereinbefore provided.

Rule 14(22)

i **NOTE**
IO ka transfer inquiry **restart nahi** karta. Successor record se aage badhta hai — aur zaroorat ho toh witnesses dobara bula sakta hai.

Rule 14(23) The inquiry report

RULE KYA KEHTA HAI

(i) After the conclusion of the inquiry, a report shall be prepared and it shall contain — (a) the articles of charge and the statement of the imputations of misconduct or misbehaviour; (b) the defence of the Government servant in respect of each article of charge; (c) an assessment of the evidence in respect of each article of charge; (d) the findings on each article of charge and the reasons therefor.

Rule 14(23)(i)

EXPLANATION

Explanation — If in the opinion of the inquiring authority the proceedings of the inquiry establish any article of charge different from the original articles of the charge, it may record its findings on such article of charge: Provided that the findings on such article of charge shall not be recorded unless the Government servant has either admitted the facts on which such article of charge is based or has had a reasonable opportunity of defending himself against such article of charge.

Explanation to Rule 14(23)(i)

RULE KYA KEHTA HAI

(ii) The inquiring authority, where it is not itself the disciplinary authority, shall forward to the disciplinary authority the records of inquiry which shall include — (a) the report prepared by it under clause (i); (b) the written statement of defence, if any, submitted by the Government servant; (c) the oral and documentary evidence produced in the course of the inquiry; (d) written briefs, if any, filed by the Presenting Officer or the Government servant or both during the course of the inquiry; and (e) the orders, if any, made by the disciplinary authority and the inquiring authority in regard to the inquiry.

Rule 14(23)(ii)

The report must contain	Check
(a) Articles of charge + statement of imputations	Attached and reproduced
(b) The defence on **each** article	Not a summary — the actual defence
(c) Assessment of evidence on **each** article	Witness-by-witness, document-by-document
(d) Findings on each article **with reasons**	"Proved" / "Not proved" / "Partly proved" + why

! YAAD RAKHIYE
Bina kaaran ki finding, finding nahi hoti. Sirf "charge proved" likhne par order gir jaata hai. Har charge par ek paragraph reasoning likhiye — das minute lagte hain, case bach jaata hai.

Rule 14(24) Time limit for the inquiry

RULE KYA KEHTA HAI

(a) The Inquiring Authority should conclude the inquiry and submit his report within a period of six months from the date of receipt of order of his appointment as Inquiring Authority. (b) Where it is not possible to adhere to the time limit specified in clause (a), the Inquiring Authority may record the reasons and seek extension of time from the disciplinary authority in writing, who may allow an additional time not exceeding six months for completion of the inquiry, at a time. (c) The extension for a period not exceeding six months at a time may be allowed for any good and sufficient reasons to be recorded in writing by the Disciplinary Authority or any other Authority authorised by the Disciplinary Authority on his behalf.

Rule 14(24)

6	6	∞
months for the inquiry	months per extension	extensions but each must be reasoned

Yeh **directory** time-limits hain, mandatory nahi: report late aaye toh inquiry apne aap invalid nahi hoti. Par bewaajah deri suspended officer ki reinstatement ka ground hai — aur appellate authority sabse pehle yahi puchti hai.

Rule 15 Action on the inquiry report

RULE KYA KEHTA HAI

(1) The disciplinary authority, if it is not itself the inquiring authority may, for reasons to be recorded by it in writing, remit the case to the inquiring authority for further inquiry and report and the inquiring authority shall thereupon proceed to hold the further inquiry according to the provisions of Rule 14, as far as may be.

Rule 15(1)

RULE KYA KEHTA HAI

(2) The disciplinary authority shall forward or cause to be forwarded a copy of the report of the inquiry, if any, held by the disciplinary authority or where the disciplinary authority is not the inquiring authority, a copy of the report of the inquiring authority together with its own tentative reasons for disagreement, if any, with the findings of inquiring authority on any article of charge to the Government servant who shall be required to submit, if he so desires, his written representation or

Rule 15(2)

RULE KYA KEHTA HAI (contd.)

submission to the disciplinary authority within fifteen days, irrespective of whether the report is favourable or not to the Government servant.

RULE KYA KEHTA HAI

(3)(a) In every case where it is necessary to consult the Commission, the Disciplinary Authority shall forward or cause to be forwarded to the Commission for its advice — (i) a copy of the report of the Inquiring Authority together with its own tentative reasons for disagreement, if any, with the findings of Inquiring Authority on any article of charge; and (ii) comments of Disciplinary Authority on the representation of the Government servant on the Inquiry report and disagreement note, if any, and all the case records of the inquiry proceedings.

Rule 15(3)(a)

RULE KYA KEHTA HAI

(b) The Disciplinary Authority shall forward or cause to be forwarded a copy of the advice of the Commission received under clause (a) to the Government servant, who shall be required to submit, if he so desires, his written representation or submission to the Disciplinary Authority within fifteen days, on the advice of the Commission.

Rule 15(3)(b)

RULE KYA KEHTA HAI

(4) The Disciplinary Authority shall consider the representation under sub-rule (2) and/or clause (b) of sub-rule (3), if any, submitted by the Government servant and record its findings before proceeding further in the matter as specified in sub-rules (5) and (6).

Rule 15(4)

RULE KYA KEHTA HAI

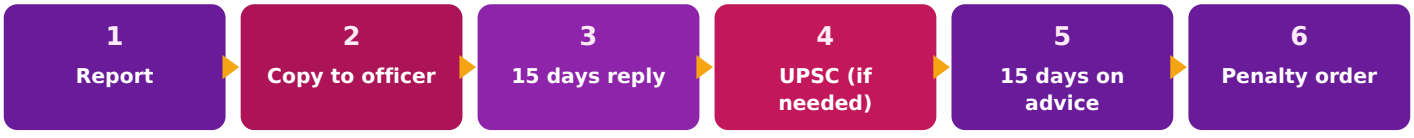
(5) If the Disciplinary Authority having regard to its findings on all or any of the articles of charge is of the opinion that any of the penalties specified in clauses (i) to (iv) of Rule 11 should be imposed on the Government servant, it shall, notwithstanding anything contained in Rule 16, make an order imposing such penalty.

Rule 15(5)

RULE KYA KEHTA HAI

(6) If the Disciplinary Authority having regard to its findings on all or any of the articles of charge and on the basis of the evidence adduced during the inquiry is of the opinion that any of the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, it shall make an order imposing such penalty and it shall not be necessary to give the Government servant any opportunity of making representation on the penalty proposed to be imposed.

Rule 15(6)



RULE 15(2) KYA DETA HAI

- Report ki copy — **chahe favourable ho**.
- DA ka tentative disagreement, agar ho.
- Jawab ke liye 15 din.
- DA ko aapke representation par findings likhni hain (15(4)).

What Rule 15(6) means

- Proposed penalty par **doosra show-cause nahi**.
- Jab tak report aur disagreement note mil gaye hote hain.
- Penalty order phir bhi **speaking order** hona chahiye.
- UPSC ki advice, agar ho, pehle deni hogi.

DHYAN SE

Article 311(2) ke tahat purana "second show-cause notice" 1976 mein khatam ho gaya. Proposed penalty par raay maangna ab right nahi — par Rule 15(2) ke tahat **report + disagreement note + 15 din** mandatory right hai, aur ise chhodna jaanleva hai.

YAAD RAKHIYE

UPSC consultation: zaroori hai jahan Rules ya Schedule kahein (aam taur par Group 'A' aur kuch Group 'B' posts). Officer ko Commission ki advice aur uspar comment ke liye 15 din dene honge — 2014 ke amendment se joda gaya (aur seedha nateeja **S.K. Kapoor** ka).

Rule 16 Procedure for minor penalties

RULE KYA KEHTA HAI

(1) Subject to the provisions of sub-rule (5) of Rule 15, no order imposing on a Government servant any of the penalties specified in clauses (i) to (iv) of Rule 11 shall be made except after — (a) informing the Government servant in writing of the proposal to take action against him and of the imputations of misconduct or misbehaviour on which it is proposed to be taken, and giving him reasonable opportunity of making such representation as he may wish to make against the proposal; (b) holding an inquiry in the manner laid down in sub-rules (3) to (24) of Rule 14, in every case in which the disciplinary authority is of the opinion that such inquiry is necessary; (c) taking the representation, if any, submitted by the Government servant under clause (a) and the record of inquiry, if any, held under clause (b) into consideration; (d) consulting the Commission where such consultation is necessary. The Disciplinary Authority shall forward or cause to be forwarded a copy of the advice of the Commission to the Government servant, who shall be required to submit, if he so desires, his written representation or submission on the advice of the Commission, to the Disciplinary Authority within fifteen days; and (e) recording a finding on each imputation of misconduct or misbehaviour.

Rule 16(1)

RULE KYA KEHTA HAI

(1-A) Notwithstanding anything contained in clause (b) of sub-rule (1), if in a case it is proposed after considering the representation, if any, made by the Government servant under clause (a) of that sub-rule, to withhold increments of pay and such withholding of increments is likely to affect adversely the amount of pension payable to the Government servant or to withhold increments of pay for a period exceeding three years or to withhold increments of pay with cumulative effect for any period, an inquiry shall be held in the manner laid down in sub-rules (3) to (24) of Rule 14, before making any order imposing on the Government servant any such penalty.

Rule 16(1-A)

RULE KYA KEHTA HAI

(2) The record of the proceedings in such cases shall include — (i) a copy of the intimation to the Government servant of the proposal to take action against him; (ii) a copy of the statement of imputations of misconduct or misbehaviour delivered to him; (iii) his representation, if any; (iv) the evidence produced during the inquiry; (v) the advice of the Commission, if any; (vi) representation, if

Rule 16(2)

RULE KYA KEHTA HAI (contd.)

any, of the Government servant on the advice of the Commission; (vii) the findings on each imputation of misconduct or misbehaviour; and (viii) the orders on the case together with the reasons therefor.

1 Proposal → 2 Imputations → 3 Representation → 4 Inquiry if needed → 5 Finding + order

Penalty proposed	Inquiry mandatory?
Censure	No — written proposal and a chance to represent is enough
Withholding of promotion / recovery / reduction under (iii-a)	No, unless the DA considers an inquiry necessary
Withholding of increments — ordinary	No
Withholding of increments that is likely to affect **pension** adversely	**Yes** — Rule 16(1-A)
Withholding of increments for **more than 3 years**	**Yes** — Rule 16(1-A)
Withholding of increments **with cumulative effect**	**Yes** — Rule 16(1-A)

Rule 17 Communication of the order

RULE KYA KEHTA HAI

Orders made by the disciplinary authority shall be communicated to the Government servant who shall also be supplied with a copy of its finding on each article of charge, or where the disciplinary authority is not the inquiring authority, a statement of the findings of the disciplinary authority together with brief reasons for its disagreement, if any, with the findings of the inquiring authority and also a copy of the advice, if any, given by the Commission, and where the disciplinary authority has not accepted the advice of the Commission, a brief statement of the reasons for such non-acceptance.

Rule 17

Must be given with the order	Why
Findings on each article of charge	So you know exactly what was held against you
DA's disagreement with the IO, with brief reasons	So you can challenge the reasoning
Copy of the UPSC advice	So you can see what the Commission said
Reasons for **not** accepting that advice	So the order shows independent application of mind

Rule 18 Common proceedings

RULE KYA KEHTA HAI

(1) Where two or more Government servants are concerned in any case, the President or any other authority competent to impose the penalty of dismissal from service on all such Government servants may make an order directing that disciplinary action against all of them may be taken in a common proceeding.

Rule 18(1)

NOTE

Note — If the authorities competent to impose the penalty of dismissal on such Government servants are different, an order for taking disciplinary action in a common proceeding may be made by the highest of such authorities with the consent of the others.

Note to Rule 18(1)

RULE KYA KEHTA HAI

(2) Subject to the provisions of sub-rule (4) of Rule 12, any such order shall specify — (i) the authority which may function as the disciplinary authority for the purpose of such common proceeding; (ii) the penalties specified in Rule 11 which such disciplinary authority shall be competent to impose; (iii) whether the procedure laid down in Rule 14 and Rule 15 or Rule 16 shall be followed in the proceeding.

Rule 18(2)

e

EXAMPLE

Ek cashier aur ek clerk, dono ₹5 lakh ki shortfall mein involved. Common proceeding order hoti hai. Order mein likhna hoga **kaun** DA hoga, **kaunsi penalties** woh dono par laga sakta hai, aur Rule 14 ka procedure lagega ya Rule 16 ka — kyunki dono officers alag Groups mein ho sakte hain aur unki penalty powers alag hain.

Rule 19 — Special procedure — conviction, impracticability, State security

RULE KYA KEHTA HAI

Notwithstanding anything contained in Rule 14 to Rule 18 — (i) where any penalty is imposed on a Government servant on the ground of conduct which has led to his conviction on a criminal charge, or (ii) where the disciplinary authority is satisfied for reasons to be recorded by it in writing that it is not reasonably practicable to hold an inquiry in the manner provided in these Rules, or (iii) where the President is satisfied that in the interest of the security of the State, it is not expedient to hold any inquiry in the manner provided in these Rules, the disciplinary authority may consider the circumstances of the case and make such orders thereon as it deems fit.

Rule 19

PROVISO

Provided that the Government servant may be given an opportunity of making representation on the penalty proposed to be imposed before any order is made in a case under clause (i).

First proviso to Rule 19

PROVISO

Provided further that the Commission shall be consulted, where such consultation is necessary, and the Government servant has been given an opportunity of representing against the advice of the Commission, within the time limit specified in clause (b) of sub-rule (3) of Rule 15, before any orders are made in any case under this rule.

Second proviso to Rule 19

Ground	Who must be satisfied	Safeguard
(i) Conviction on a criminal charge	The disciplinary authority	Opportunity to represent on the proposed penalty
(ii) Not reasonably practicable to hold an inquiry	The disciplinary authority — **reasons in writing**	Reasons must be recorded and must be justiciable
(iii) Security of the State	**The President**	Highest satisfaction level in the Rules

DHYAN SE
Rule 19 **emergency exit** hai aur courts ise tight padhte hain. “Not reasonably practicable” ka matlab “inconvenient” ya “witnesses saath nahi de rahe” nahi ho sakta. Kaaran **order ke andar** likhne honge, baad mein affidavit mein nahi (Tulsiram Patel principle).

Rule 20 Officers lent to a State Government or other authority

RULE KYA KEHTA HAI

(1) Where the services of a Government servant are lent by one department to another department or to a State Government or an authority subordinate thereto or to a local or other authority (hereinafter in this rule referred to as “the borrowing authority”), the borrowing authority shall have the powers of the appointing authority for the purpose of placing such Government servant under suspension and of the disciplinary authority for the purpose of conducting a disciplinary proceeding against him.

Rule 20(1)

PROVISO

Provided that the borrowing authority shall forthwith inform the authority which lent the services of the Government servant (hereinafter in this rule referred to as “the lending authority”) of the circumstances leading to the order of suspension of such Government servant or the commencement of the disciplinary proceeding, as the case may be.

Proviso to Rule 20(1)

RULE KYA KEHTA HAI

(2) In the light of the findings in the disciplinary proceeding conducted against the Government servant — (i) if the borrowing authority is of the opinion that any of the penalties specified in clauses (i) to (iv) of Rule 11 should be imposed on the Government servant, it may, after consultation with the lending authority, make such orders on the case as it deems necessary: Provided that in the event of a difference of opinion between the borrowing authority and the lending authority, the services of the Government servant shall be replaced at the disposal of the lending authority; (ii) if the borrowing authority is of the opinion that any of the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, it shall replace his services at the disposal of the lending authority and transmit to it the proceedings of the inquiry and thereupon the lending authority may, if it is the disciplinary authority, pass such order thereon as it may deem necessary, or, if it is not the disciplinary authority, submit the case to the disciplinary authority which shall pass such orders on the case as it may deem necessary.

Rule 20(2)

Stage	Borrowing authority may	Lending authority's role
Suspension	Suspend — it has the powers of the appointing authority	Must be informed forthwith
Minor penalty	Impose after **consultation**; if opinions differ, the officer goes back	Consulted; may disagree, then the officer is returned
Major penalty	Cannot impose — replace the officer and send the inquiry record	Decides the penalty (or forwards to the competent DA)

EXPLANATION

Explanation — The disciplinary authority may make an order under this clause on the record of the inquiry transmitted to it by the borrowing authority or after holding such further inquiry as it may deem necessary, as far as may be, in accordance with Rule 14.

Explanation to Rule 20(2)

Rule 21 — Officers borrowed from a State Government or other authority

RULE KYA KEHTA HAI

(1) Where an order of suspension is made or a disciplinary proceeding is conducted against a Government servant whose services have been borrowed by one department from another department or from a State Government or an authority subordinate thereto or a local or other authority, the authority lending his services (hereinafter in this rule referred to as "the lending authority") shall forthwith be informed of the circumstances leading to the order of the suspension of the Government servant or of the commencement of the disciplinary proceeding, as the case may be.

Rule 21(1)

RULE KYA KEHTA HAI

(2) In the light of the findings in the disciplinary proceeding conducted against the Government servant, if the disciplinary authority is of the opinion that any of the penalties specified in clauses (i) to (iv) of Rule 11 should be imposed on him, it may, subject to the provisions of sub-rule (3) of Rule 15 and except in regard to a Government servant serving in the Intelligence Bureau up to the rank of Assistant Central Intelligence Officer, after consultation with the lending authority, pass such orders on the case as it may deem necessary — (i) provided that in the event of a difference of opinion between the borrowing authority and the lending authority, the services of the Government servant shall be replaced at the disposal of the lending authority; (ii) if the disciplinary authority is of the opinion that any of the penalties specified in clauses (v) to (ix) of Rule 11 should be imposed on the Government servant, it shall replace the services of such Government servant at the disposal of the lending authority and transmit to it the proceedings of the inquiry for such action, as it may deem necessary.

Rule 21(2)

Rule 20 vs Rule 21

Rule 20 = hum apna officer **udhaar dete hain**. Rule 21 = hum doosre ka officer **udhaar lete hain**.

Common thread

Lending authority ko major penalty ke liye officer hamesha wapas milta hai, aur use turant soochna di jaati hai.

Special carve-out

Rule 21(2) Intelligence Bureau ke Assistant Central Intelligence Officer tak ke staff ko consultation se chhoot deta hai.

Difference of opinion

Officer ki services lending authority ko wapas — borrower ladai nahi karta.

Part VI ek line mein: charges likhit mein, pura sunwai, reasoned report, officer ko copy, jawab ke 15 din — phir speaking order.



BABU-JI KEHTE HAIN

Departmental inquiry criminal trial nahi hai, par aadat wahi hai: notice, evidence, cross-examination aur reasons. Ek chhoot gaya toh file wapas aati hai.

THE TWO MOST SKIPPED STEPS

Rule 14(18) general questioning · Rule 15(2) report + 15 din.

THE ONE SAFEST HABIT

Har step order sheet par date ke saath likhiye.

CHAPTER KHATAM · AAPNE KYA PADHA

- The big picture Two roads to a penalty
- Rule 14(1) No major penalty without an inquiry
- Rule 14(2) Who holds the inquiry
- Rule 14(3) Drawing up the charge sheet
- Rule 14(4) Delivery of the charge sheet — 15 days,...
- Rule 14(5) After the reply: inquire, or appoint an...
- Rule 14(6) What the DA sends to the Inquiring...
- Rule 14(7) First appearance — 10 working days
- Rule 14(8) Your Defence Assistant
- Rule 14(9) and 14(10) The plea
- Rule 14(11) If you do not appear — the ex parte drill
- Rule 14(12) and 14(13) Getting documents from...
- Rule 14(14) Recording the evidence
- Rule 14(15) New evidence — only to fill a lacuna,...
- Rule 14(16) to 14(19) Your defence and the closing
- Rule 14(20) Ex parte inquiry
- Rule 14(21) When the minor-penalty authority finds...
- Rule 14(22) Change of Inquiring Authority
- Rule 14(23) The inquiry report
- Rule 14(24) Time limit for the inquiry
- Rule 15 Action on the inquiry report
- Rule 16 Procedure for minor penalties
- Rule 17 Communication of the order
- Rule 18 Common proceedings
- Rule 19 Special procedure — conviction,...
- Rule 20 Officers lent to a State Government or...
- Rule 21 Officers borrowed from a State Government...

A penalty is only as good as its appeal. 45 days, own name, complete in itself.

AAGE KYA: Part VII — Appeals



BABU-JI KI SAAVADHANI

Har deadline ki ek hi dawa hai — likhkar record kariye. Zubani diya gaya extension file mein kabhi nahi dikhta.

PART VII — APPEALS

RULES 22 TO 28

No appeal · appealable orders · appellate authority · 45 days · form · consideration · implementation

Appeal re-trial nahi hai. Yeh **structured review** hai teen sawaalon par: procedure follow hua, finding evidence se banti hai, aur penalty proportionate hai? Rule 27 appellate authority ko bahut badi power deta hai — enhancement ki bhi.



45 din. Likhit mein. Apne naam se. Us authority ke through jisne order diya. Rules 25 aur 26 itna hi kehte hain.

Rule 22 Orders against which no appeal lies

RULE KYA KEHTA HAI

Notwithstanding anything contained in this Part, no appeal shall lie against — (i) any order made by the President; (ii) any order of an interlocutory nature or of the nature of a step-in-aid of the final disposal of a disciplinary proceeding, other than an order of suspension; (iii) any order passed by an inquiring authority in the course of an inquiry under Rule 14.

Rule 22

Order	Appeal?	What you can do instead
Order of the President	No	Judicial review; Rule 29-A review by the President himself
Interlocutory order — e.g. refusal of documents, refusal of a Defence Assistant	No — except suspension orders	Represent to the IO; raise it in the appeal against the final order
Any order of the Inquiring Authority during the inquiry	No	Same as above — it becomes a ground of appeal later
Order of suspension	**Yes**	Rule 23(i) — an express exception

YAAD RAKHIYE

Practical point: interlocutory order par appeal nahi hoti, par Inquiry Officer ki appointment ke khilaf review petition daali ja sakti hai. DoPT instructions kehti hain ki aisi petition aane par inquiry rok di jaani chahiye.

Rule 23 Orders against which an appeal DOES lie

RULE KYA KEHTA HAI

Subject to the provisions of Rule 22, a Government servant may prefer an appeal against all or any of the following orders, namely: — (i) an order of suspension made or deemed to have been made under Rule 10; (ii) an order imposing any of the penalties specified in Rule 11, whether made by the disciplinary authority or by any appellate or revising authority; (iii) an order enhancing any penalty imposed under Rule 11; (iv) an order which — (a) denies or varies to his disadvantage his pay, allowances, pension or other conditions of service as regulated by rules or by agreement; or (b) interprets to his disadvantage the provisions of any such rule or agreement;

Rule 23 (part)

RULE KYA KEHTA HAI

(v) an order — (a) stopping him at the efficiency bar in the time-scale of pay on the ground of his unfitness to cross the bar; (b) reverting him while officiating in a higher Service, grade or post, to a lower Service, grade or post, otherwise than as a penalty; (c) reducing or withholding the pension or denying the maximum pension admissible to him under the rules; (d) determining the subsistence and other allowances to be paid to him for the period of suspension or for the period during which he is deemed to be under suspension or for any portion thereof; (e) determining his pay and allowances — (i) for the period of suspension, or (ii) for the period from the date of his dismissal, removal or compulsory retirement from service, or from the date of his reduction to a lower Service, grade, post, time-scale or stage in a time-scale of pay, to the date of his reinstatement or restoration; or (f) determining whether or not the period from the date of his suspension or from the date of his dismissal, removal, compulsory retirement or reduction to a lower Service, grade, post, time-scale of pay to the date of his reinstatement or restoration shall be treated as a period spent on duty for any purpose.

Rule 23 (contd.)

EXPLANATION

Explanation — In this rule — (i) the expression 'Government servant' includes a person who has ceased to be in Government service; (ii) the expression 'pension' includes additional pension, gratuity and any other retirement benefits.

Explanation to Rule 23

Appealable order	Clause	Everyday example
Suspension	23(i)	Order placing you under suspension or deemed suspension
Any Rule 11 penalty	23(ii)	Censure, recovery, withholding of increment, dismissal
Enhancement of a penalty	23(iii)	Censure upgraded to stoppage of two increments by the appellate authority
Pay / pension / conditions of service varied to your disadvantage	23(iv)	Refixation of pay that reduces your basic pay
Stoppage at the efficiency bar	23(v)(a)	Withholding of the annual increment at the EB
Reversion while officiating, not as a penalty	23(v)(b)	Ad hoc promotion to Group A withdrawn
Pension reduced or maximum pension denied	23(v)(c)	Pro-rata reduction of pension
Subsistence allowance determination	23(v)(d)	Reduction to 25% after three months
Pay for the suspension or reinstatement period	23(v)(e)	Pay fixed at 50% for the suspension period
Whether a period counts as duty	23(v)(f)	"Not treated as duty" endorsement on the reinstatement order

NOTE

Explanation rule ko do jagah bada karta hai: jo **service chhod chuka** hai (pension ke liye) uspar bhi lagta hai, aur **gratuity aur doosre retiral benefits** ko pension maanta hai.

Rule 24 Who is the appellate authority

RULE KYA KEHTA HAI

(1) A Government servant, including a person who has ceased to be in Government service, may prefer an appeal against all or any of the orders specified in Rule 23 to the authority specified in this behalf either in the Schedule or by a general or special order of the President or, where no such authority is

Rule 24(1)

RULE KYA KEHTA HAI (contd.)

specified — (i) where such Government servant is or was a member of a Central Civil Service, Group 'A' or Group 'B' or holder of a Central Civil Post, Group 'A' or Group 'B' — (a) to the appointing authority, where the order appealed against is made by an authority subordinate to it; or (b) to the President where such order is made by any other authority; (ii) where such Government servant is or was a member of a Central Civil Service, Group 'C' or Group 'D', or holder of a Central Civil Post, Group 'C' or Group 'D', to the authority to which the authority making the order appealed against is immediately subordinate.

RULE KYA KEHTA HAI

(2) Notwithstanding anything contained in sub-rule (1) — (i) an appeal against an order in a common proceeding held under Rule 18 shall lie to the authority to which the authority functioning as the disciplinary authority for the purpose of that proceeding is immediately subordinate: Provided that where such authority is subordinate to the President in respect of a Government servant for whom the President is the appellate authority in terms of sub-clause (b) of clause (i) of sub-rule (1), the appeal shall lie to the President. (ii) where the person who made the order appealed against becomes, by virtue of his subsequent appointment or otherwise, the appellate authority in respect of such order, an appeal against such order shall lie to the authority to which such person is immediately subordinate.

Rule 24(2)

RULE KYA KEHTA HAI

(3) A Government servant may prefer an appeal against an order imposing any of the penalties specified in Rule 11 to the President, where no such appeal lies to him under sub-rule (1) or sub-rule (2), if such penalty is imposed by any authority other than the President, on such Government servant in respect of his activities connected with his work as an office-bearer of an association, federation or union, participating in the Joint Consultation and Compulsory Arbitration Scheme.

Rule 24(3)

Your Group	Who made the order	Your appellate authority
Group 'A' / 'B'	An authority subordinate to the appointing authority	The appointing authority
Group 'A' / 'B'	Any other authority	**The President**
Group 'C' / 'D'	Any authority	The authority to which the maker of the order is **immediately subordinate**
Any group — common proceeding	The designated common DA	The authority above the common DA (President in some cases)
Any group — office-bearer of a recognised union, no appeal otherwise	Any authority other than the President	**The President** under Rule 24(3)

DHYAN SE

Rule 24(2)(ii) baareek aur kaam ka hai. Agar aapko punish karne wala officer baad mein promote ho kar appellate authority ban jaye, toh appeal uske **upar** uske senior ke paas jaati hai. Isse koi apne hi order ki appeal mein judge nahi baith sakta.

Rule 25 The 45-day limitation

RULE KYA KEHTA HAI

No appeal preferred under this Part shall be entertained unless such appeal is preferred within a period of forty-five days from the date on which a copy of the order appealed against is delivered to the appellant: Provided that the appellate authority may entertain the appeal after the expiry of the said period, if it is satisfied that the appellant had sufficient cause for not preferring the appeal in time.

Rule 25

45	Yes	Once
days from delivery of the order	condonation on sufficient cause	only no second appeal

YAAD RAKHIYE

Ghadi **order milne** se chalti hai, order ki date se nahi. Receipt ki date sambhaliye (acknowledgement, speed post proof, e-office receipt) — limitation usi se tay hoti hai.

Rule 26 Form and contents of the appeal

RULE KYA KEHTA HAI

(1) Every person preferring an appeal shall do so separately and in his own name. (2) The appeal shall be presented to the authority to whom the appeal lies, a copy being forwarded by the appellant to the authority which made the order appealed against. It shall contain all material statements and arguments on which the appellant relies, shall not contain any disrespectful or improper language, and shall be complete in itself. (3) The authority which made the order appealed against shall, on receipt of a copy of the appeal, forward the same with its comments thereon together with the relevant records to the appellate authority without any avoidable delay, and without waiting for any direction from the appellate authority.

Rule 26

APPEAL KAISI HO

- Alag-alag — ek vyakti, ek appeal.
- Appellant ke apne naam mein.
- Appellate authority ko bhejiye.
- Jis authority ne order diya, use copy.

It must not be

- Joint ya collective appeal.
- Union aapki taraf se file kare.
- Beizzati ya gaali wali bhasha.
- Adhoori — “baad mein bhej dunga” nahi chalta.

DHYAN SE

Bhadki hui bhasha mat likhiye. DoPT instructions kehti hain ki disrespectful appeal wapas kar di jaati hai — aur 45 din ka nuksan jaanleva ho sakta hai.

Rule 27 Consideration of the appeal

RULE KYA KEHTA HAI

(1) In the case of an appeal against an order of suspension, the appellate authority shall consider whether in the light of the provisions of Rule 10 and having regard to the circumstances of the case, the order of suspension is justified or not and confirm or revoke the order accordingly.

Rule 27(1)

RULE KYA KEHTA HAI

(2) In the case of an appeal against an order imposing any of the penalties specified in Rule 11 or enhancing any penalty imposed under the said rules, the appellate authority shall consider — (a) whether the procedure laid down in these rules has been complied with and if not, whether such non-compliance has resulted in the violation of any provisions of the Constitution of India or in the failure of justice; (b) whether the findings of the disciplinary authority are warranted by the evidence on the record; and (c) whether the penalty or the enhanced penalty imposed is adequate, inadequate or severe; and pass orders — (i) confirming, enhancing, reducing, or setting aside the penalty; or (ii) remitting the case to the authority which imposed or enhanced the penalty or to any other authority with such direction as it may deem fit in the circumstances of the case.

Rule 27(2)

1 Procedure OK? → **2** Evidence supports? → **3** Penalty proportionate? → **4** Confirm / reduce / enhance

PROVISO

Provided that — (i) the Commission shall be consulted in all cases where such consultation is necessary, and the Government servant has been given an opportunity of representing against the advice of the Commission within the time limit specified in clause (b) of sub-rule (3) of Rule 15; (ii) if such enhanced penalty which the appellate authority proposes to impose is one of the penalties specified in clauses (v) to (ix) of Rule 11 and an inquiry under Rule 14 has not already been held in the case, the appellate authority shall, subject to the provisions of Rule 19, itself hold such inquiry or direct that such inquiry be held in accordance with the provisions of Rule 14 and thereafter, on a consideration of the proceedings of such inquiry, make such orders as it may deem fit; (iii) if the enhanced penalty which the appellate authority proposes to impose is one of the penalties specified in the clauses (v) to (ix) of Rule 11 and an inquiry under Rule 14 has been held in the case, the appellate authority shall make such orders as it may deem fit after the appellant has been given a reasonable opportunity of making a representation against the proposed penalty; and (iv) no order imposing an enhanced penalty shall be made in any other case unless the appellant has been given a reasonable opportunity, as far as may be, in accordance with the provisions of Rule 16, of making a representation against such enhanced penalty.

Provisos to Rule 27(2)

RULE KYA KEHTA HAI

(3) In an appeal against any other order specified in Rule 23, the appellate authority shall consider all the circumstances of the case and make such orders as it may deem just and equitable.

Rule 27(3)

The appellate authority may	When
Confirm the penalty	Procedure and findings are sound and the penalty is adequate
Reduce the penalty	The penalty is severe or disproportionate
Enhance the penalty	The penalty is inadequate — but only after a fresh notice and opportunity (provisos (ii)-(iv))
Set aside the penalty	Procedure breached, or findings unsupported by evidence
Remit the case	Further inquiry or reconsideration is needed

DHYAN SE
Enhancement ki keemat hoti hai. Minor penalty ko bina inquiry major banane ke liye appellate authority ko khud Rule 14 inquiry karni hogi ya karwani hogi. Aur enhancement ke har case mein appellant ko proposed badhi penalty par jawab ka reasonable mauka milta hai.

NOTE
DoPT instructions: appeal **teen mahine** mein niptaani chahiye (khaas cases mein reasons ke saath extension). Personal hearing appellate authority ki discretion hai.

Rule 28 Implementation of the orders in appeal

RULE KYA KEHTA HAI

The authority which made the order appealed against shall give effect to the orders passed by the appellate authority.

Rule 28

Chhota rule, lamba darr. Appellate order **original authority par binding** hai — woh uske upar baith kar judge nahi kar sakti.

YAAD RAKHIYE
Appellate order laagu na ho toh upay hai **contempt-jaisi representation** appellate authority ko, aur aakhir mein appellate order laagu karwane ki writ petition.

Das mein se nau jeetne wali appeals in paanch grounds mein se kisi ek par tiki hoti hain. Order padhiye, phir jo lagu hon unhe tick kariye:

1. **Ground 1 · Competence**
   Order aisi authority ne diya jo Rule 12 ya Schedule ke tahat competent nahi thi (Article 311(1)).
2. **Ground 2 · Procedure**
   Charges dhundhle, inquiry nahi, inspection nahi, defence assistant nahi, general questioning nahi (Rule 14).
3. **Ground 3 · Evidence**
   Finding evidence ke wazan ke khilaf, ya aise material par jo officer ko kabhi dikhaya hi nahi gaya (Rule 14(18), 14(23)).
4. **Ground 4 · Report and advice**
   Inquiry report ya UPSC ki advice nahi di gayi, jawab ke 15 din nahi mile (Rules 15(2), 15(3)(b)).
5. **Ground 5 · Proportionality**
   Penalty charge ke mukable bahut badi, ya Rule 11 ka woh clause post par lagta hi nahi.

Grounds se pehle prayer likhiye. Pehle tay kariye aap chahte kya hain — set aside, nayi inquiry ke liye remit, penalty kam, ya reinstatement — phir sirf wahi grounds chuniye jo wahan pahunchate hain. Jo appeal sab kuch maangti hai, use aksar kuch nahi milta.

EXAMPLE
Dismissal ka order usi subah sign ho jata hai jab inquiry report Disciplinary Authority ko milti hai. Appellant dikhata hai ki report kabhi di hi nahi gayi, isliye Rule 15(2) ka 15-din ka mauka hi nahi mila. Appellate authority Rule 27(2)(d) ke tahat case **remit** karti hai — report dene ke baad naya order; guilt ki finding bachti hai, penalty nahi.

Part VII ek line mein: 45 din, apna naam, apne aap mein poora — aur Rule 27 se appellate authority confirm, reduce, enhance, set aside ya remit kar sakti hai.

PART VIII — REVISION & REVIEW

RULES 29 AND 29-A

Appeal ek haq hai. **Revision** supervisory power hai — upar wala khud record mangwa leta hai. **Review** usse bhi tang hai: usme naya material chahiye jo order ke waqt tha hi nahi.



Appeal = aap maangte hain. Revision = boss dekhta hai. Review = naya sabooot aata hai. Teen alag darwaze; chaabi mat milaiye.

Rule 29 Revision — who may revise, and how

RULE KYA KEHTA HAI

(1) Notwithstanding anything contained in these rules — (i) the President; or (ii) the Comptroller and Auditor-General, in the case of a Government servant serving in the Indian Audit and Accounts Department; or (iii) the Member (Personnel) Postal Services Board in the case of a Government servant serving in or under the Postal Services Board and Adviser (Human Resources Development), Department of Telecommunications in the case of a Government servant serving in or under the Telecommunications Board; or (iv) the Head of a Department directly under the Central Government, in the case of a Government servant serving in a department or office (not being the Secretariat or the Posts and Telegraphs Board), under the control of such Head of a Department; or (v) the appellate authority, within six months of the date of the order proposed to be revised; or (vi) any other authority specified in this behalf by the President by a general or special order, and within such time as may be prescribed in such general or special order; may at any time, either on his or its own motion or otherwise call for the records of any inquiry and revise any order made under these rules or under the rules repealed by Rule 34 from which an appeal is allowed, but from which no appeal has been preferred or from which no appeal is allowed, after consultation with the Commission where such consultation is necessary.

Rule 29(1)

RULE KYA KEHTA HAI

(1) [continued] and may — (a) confirm, modify or set aside the order; or (b) confirm, reduce, enhance or set aside the penalty imposed by the order, or impose any penalty where no penalty has been imposed; or (c) remit the case to the authority which made the order or to any other authority directing such authority to make such further enquiry as it may consider proper in the circumstances of the case; or (d) pass such other orders as it may deem fit.

Rule 29(1) — powers

PROVISO

Provided that no order imposing or enhancing any penalty shall be made by any revising authority unless the Government servant concerned has been given a reasonable opportunity of making a representation against the penalty proposed and where it is proposed to impose any of the penalties specified in clauses (v) to (ix) of Rule 11 or to enhance the penalty imposed by the order sought to be revised to any of the penalties specified in those clauses, and if an inquiry under Rule 14 has not already been held in the case, no such penalty shall be imposed except after an inquiry in the manner laid down in Rule 14 subject to the provisions of Rule 19, and except after consultation with the

First proviso to Rule 29(1)

PROVISO (contd.)

Commission where such consultation is necessary and the Government servant has been given an opportunity of representing against the advice of the Commission.

PROVISO

Provided further that no power of revision shall be exercised by the Comptroller and Auditor-General, Member (Personnel), Postal Services Board, Adviser (Human Resources Department), Department of Telecommunications or the Head of Department, as the case may be, unless — (i) the authority which made the order in appeal, or (ii) the authority to which an appeal would lie, where no appeal has been preferred, is subordinate to him.

Second proviso to Rule 29(1)

RULE KYA KEHTA HAI

(2) No proceeding for revision shall be commenced until after — (i) the expiry of the period of limitation for an appeal, or (ii) the disposal of the appeal, where any such appeal has been preferred.

Rule 29(2)

RULE KYA KEHTA HAI

(3) An application for revision shall be dealt with in the same manner as if it were an appeal under these rules.

Rule 29(3)

Who	Over whom	Time limit
The President	Any Government servant	Any time
CAG	IA&AD staff — and the authority in appeal must be subordinate to him	Any time
Member (Personnel), Postal Services Board / Adviser (HRD), DoT	Postal / Telecom staff, subject to subordination	Any time
Head of Department	Staff under him (not Secretariat / P&T Board)	Any time
Appellate authority	Orders it could have heard in appeal	**Within six months** of the order
Any other authority specified by the President	As specified	As specified in the order

DHYAN SE

Revision appeal ko bypass karne ka raasta nahi hai. Rule 29(2) kehta hai ki appeal ki period khatam hone ya appeal decide hone se pehle revision shuru nahi hoti. Aur revision petition appeal ki tarah handle hoti hai (Rule 29(3)) — yaani likhit, poora aur tameez wala submission.

NOTE

Revision **haq nahi** hai. Authority record mangwane se mana kar sakti hai. Par Rule 29(1)(i) ke tahat President ki power lagbhag unlimited hai — Rule 29-A review aur judicial review se pehle ka aakhri administrative upay.

Rule 29-A Review — only on new material

RULE KYA KEHTA HAI

The President may, at any time, either on his own motion or otherwise review any order passed under these rules, when any new material or evidence which could not be produced or was not available at the time of passing the order under review and which has the effect of changing the nature of the case, has come, or has been brought, to his notice.

Rule 29-A

PROVISO

Provided that no order imposing or enhancing any penalty shall be made by the President unless the Government servant concerned has been given a reasonable opportunity of making a representation against the penalty proposed or where it is proposed to impose any of the major penalties specified in Rule 11 or to enhance the minor penalty imposed by the order sought to be reviewed to any of the major penalties and if an inquiry under Rule 14 has not already been held in the case, no such penalty shall be imposed except after inquiring in the manner laid down in Rule 14, subject to the provisions of Rule 19, and except after consultation with the Commission where such consultation is necessary and the Government servant has been given an opportunity of representing against the advice of the Commission.

Proviso to Rule 29-A

REVIEW KAB MILTA HAI

- **Naya material** saamne aata hai.
- Woh material pehle **pesh nahi ho sakta tha**.
- Order ke waqt woh **maujood nahi** tha.
- Woh case ki **nature badal deta** hai.
- Review sirf **President** kar sakte hain.

Review is not

- Doosri appeal.
- Purane evidence par dobara bahas ka mauka.
- Kisi bhi doosri authority ko milta hai.
- Writ petition ka substitute.
- Bande case ko usi facts par dobara kholne ka raasta.

EXAMPLE

e

Dismissal ke baad handwriting expert ki report aati hai ki vivaadit signature jali the. Woh report pehle available nahi thi aur case ki nature badal deti hai — President Rule 29-A ke tahat order review kar sakte hain.

Part VIII ek line mein: revision supervisory power hai, review ke liye naya material chahiye — aur review sirf President kar sakte hain.



BABU-JI KEHTE HAIN

Appeal aur writ petition ke beech ek aur administrative darwaza hai: Rule 29(1)(i) ke tahat President ko revision petition.

REVISION

Kabhi bhi — President; appellate authority ke liye chhe mahine.

REVIEW

Sirf naya material — Rule 29-A.

CHAPTER KHATAM · AAPNE KYA PADHA

- Rule 29 Revision — who may revise, and how
- Rule 29-A Review — only on new material

Penalties, appeals and revision are done. The back of the book turns it all into posters and questions.

AAGE KYA: Part IX — Miscellaneous

PART IX — MISCELLANEOUS

RULES 30 TO 35

Chhe chhote rules: notice theek se serve hua ya nahi, der se aaya jawab record par liya ja sakta hai ya nahi, aur 1965 Rules lagu hone ke waqt pending cases ka kya hua.



Rule 30 boring lagta hai — jab tak ex parte order isliye nahi gir jata ki notice kabhi serve hi nahi hua. Notice ki service har case ki neev hai.

Rule 30 Service of orders, notices and other process

RULE KYA KEHTA HAI

Every order, notice and other process made or issued under these rules shall be served in person on the Government servant concerned or communicated to him by registered post.

Rule 30

Mode	What counts as good service
In person	Handed over to the employee against his signature — the safest mode
Registered post	Sent to the address in the service record; the acknowledgement is preserved
Speed post / courier (departmental practice)	Accepted where the departmental instructions permit, with proof of delivery
Email / e-office (departmental practice)	Accepted where the e-office system records receipt
Refusal to accept	Recorded before witnesses; then treated as served — the file must show the refusal

DHYAN SE

Har notice ka **proof of service** file mein rakhiye — charge sheet, inquiry notice, hearing notice, inquiry report, penalty order. Iske bina ex parte finding lagbhag hamesha set aside hoti hai.

Rule 31 Power to relax time-limits and condone delay

RULE KYA KEHTA HAI

Save as otherwise expressly provided in these rules, the authority competent under these rules to make any order may, for good and sufficient reasons or if sufficient cause is shown, extend the time specified in these rules for anything required to be done under these rules or condone any delay.

Rule 31

Yeh **safety valve** hai. Rules ki lagbhag har time-limit competent authority badha sakti hai — sirf wahan nahi jahan Rules saaf mana karein. Sabse ahem express bar hai Rule 14(4)(b) ke proviso mein written statement of defence ki **45-din ki absolute ceiling**.

EXAMPLE

Charged officer ka defence 47th din aata hai. Rule 31 use bacha nahi sakta, kyunki Rule 14(4)(b) ka proviso kehta hai “under no circumstances” 45 din se zyada nahi. Par Inquiring Authority ki report late ho, toh Rule 31 reasons likh kar Rule 14(24) ki timeline badha sakta hai.

Rule 32 Omitted — supply of the Commission's advice

Rule 32 pehle **"Supply of copy of Commission's advice"** tha — UPSC ki advice ki copy Government servant ko deni padti thi. Ise Central Civil Services (Classification, Control and Appeal) (**Second Amendment**) Rules, **2014** ne **31 October 2014** ko **hata diya** (omitted), kyunki wahi safeguard asli rules mein hi likh diya gaya.

After the 2014 amendment, the right lives in	Wording
Rule 15(3)(b)	A copy of the UPSC's advice must be forwarded to the officer, who may represent within **15 days**
Rule 16(1)(d)	The same right is repeated for **minor penalty** cases where consultation is necessary
Rule 19 (second proviso)	Applies to special-procedure cases (conviction, impracticability, State security)
Rule 27(2), proviso (i)	Applies to appeals where the Commission must be consulted
Rule 29 and Rule 29-A	Applies to revision and review before a penalty is imposed or enhanced

! **DHYAN SE**
Toh Rule 32 "gum" nahi hua — woh **absorb** ho gaya. Appeal likhte waqt Rule 15(3)(b) ya Rule 27(2) proviso (i) likhiye, Rule 32 nahi.

Rule 33 Transitory provisions

RULE KYA KEHTA HAI

On and from the commencement of these rules, and until the publication of the Schedules under these rules, the Schedules to the Central Civil Services (Classification, Control and Appeal) Rules, 1957, and the Civilians in Defence Services (Classification, Control and Appeal) Rules, 1952, as amended from time to time, shall be deemed to be the Schedules relating to the respective categories of Government servants to whom they are, immediately before the commencement of these rules, applicable and such Schedules shall be deemed to be the Schedules referred to in the corresponding rules of these rules.

Rule 33

i **NOTE**
Yeh **1965 ka pul** hai. Purane Schedules naye chhapne tak zinda rakhe. Aaj iska practical use nahi, par isse samajh aata hai ki purane orders 1957 Rules kyun quote karte hain.

Rule 34 Repeal and saving

RULE KYA KEHTA HAI

(1) Subject to the provisions of Rule 33, the Central Civil Services (Classification, Control and Appeal) Rules, 1957, and the Civilians in Defence Services (Classification, Control and Appeal) Rules, 1952, and any notifications or orders issued thereunder in so far as they are inconsistent with these rules, are hereby repealed.

Rule 34(1)

PROVISO

Provided that — (a) such repeal shall not affect the previous operation of the said rules, or any notification or order made, or anything done, or any action taken, thereunder; (b) any proceedings under the said rules, pending at the commencement of these rules shall be continued and disposed of,

Proviso to Rule 34(1)

PROVISO (contd.)

as far as may be, in accordance with the provisions of these rules, as if such proceedings were proceedings under these rules.

RULE KYA KEHTA HAI

(2) Nothing in these rules shall be construed as depriving any person to whom these rules apply, of any right of appeal which had accrued to him under the rules, notification or orders in force before the commencement of these rules.

Rule 34(2)

RULE KYA KEHTA HAI

(3) An appeal pending at the commencement of these rules against an order made before such commencement shall be considered and orders thereon shall be made, in accordance with these rules as if such orders were made and the appeals were preferred under these rules.

Rule 34(3)

RULE KYA KEHTA HAI

(4) As from the commencement of these rules any appeal or application for review against any orders made before such commencement shall be preferred or made under these rules, as if such orders were made under these rules: Provided that nothing in these rules shall be construed as reducing any period of limitation for any appeal or review provided by any rule in force before the commencement of these rules.

Rule 34(4)

Vested rights survive

Rule 34(2) — jo appeal ka haq ban chuka hai, woh chhinta nahi.

Pending appeals

Rule 34(3) — naye Rules ke tahat decide, jaise unhi ke tahat file hui ho.

Limitation

Rule 34(4) — naye Rules pehle se shuru limitation period kam nahi kar sakte.

Rule 35 Removal of doubts

RULE KYA KEHTA HAI

If any doubt arises as to the interpretation of any of the provisions of these rules, the matter shall be referred to the President or such other authority as may be specified by the President by general or special order, and the President or such other authority shall decide the same.

Rule 35

Aakhri interpretation clause. Jahan rule ka matlab sach mein dhundhla ho, sawaal **President** ke paas jaata hai (practical mein DoPT ke paas), aur unka faisla executive ke andar final hai.

! **YAAD RAKHIYE**

Rule 35 **administrative** raasta hai, judicial nahi. Yeh court ko Rules padhne se nahi rokta — sirf Government ka internal view tay karta hai.

Part IX ek line mein: har notice theek se serve kariye (30), deri maaf karwane ke liye Rule 31 lagaiye, aur yaad rakhiye ki 33-34 sirf history ke liye hain.

THE SCHEDULE

FIVE PARTS, FIVE COLUMNS

Schedule Rules ki **operative table** hai. Rules 5, 8, 9, 12 aur 24 sab isi ki taraf ishara karte hain: har Service ka naam, uski appointing authority, penalty lagane wali authority aur kaunsi penalties.



Aapki Service Schedule mein hai toh apni row padhiye. Nahi hai toh aap General Central Service mein hain — aur Rule 7 wapas Schedule par bhej deta hai.

Part of the Schedule	Covers
Part I	Central Civil Services, Group 'A'
Part II	Central Civil Services, Group 'B' (except civilians in Defence Services)
Part III	Central Civil Services, Group 'C' (except civilians in Defence Services)
Part IV	Central Civil Services, Group 'D' (except civilians in Defence Services)
Part V	Central Posts in the Defence Services

Column	What it tells you
(1) Serial number	The entry number — useful when an order cites “item 34 of Part II”
(2) Description of Service / post	The name of the Service, grade or post, including any grade pay or level description used in older entries
(3) Appointing authority	Who appoints — and therefore who is the appointing authority for Article 311 and Rules 10 and 12
(4) Authority competent to impose penalties	The disciplinary authority for that Service/post
(5) Penalties which it may impose	With reference to the item numbers of Rule 11 — e.g. “All” or “all minor penalties” or “(i) to (iv)”

Apni row kaise padhiye: Schedule ke sahi Part mein apni Service dhoondhiye; column (3) mein appointing authority; column (4) mein disciplinary authority; column (5) mein dekhiye ki Rule 11 ki kaunsi penalties woh authority laga sakti hai.

DHYAN SE
Jahan Schedule chup hai, wahan Rule 12(2) aur Rule 24(1) jawab dete hain: appointing authority, ya order dene wale se turant upar wali authority.

The Schedule **Recent amendments you should know about**

Notification	What changed
G.S.R. 156 dated 19 October 2022 (published 22 October 2022)	Schedule entries updated — the amendment immediately preceding the 2023 change
G.S.R. 18(E) dated 10 January 2023	Schedule, Part V (Defence Services) — entries relating to the Ordnance Factory Board (against S. Nos. 1 and 2, para (B)(xi)) omitted, following the creation of the Ordnance Factory Board successor entities
G.S.R. 337(E) dated 29 May 2024 (published 20 June 2024)	Schedule, Part V amended
G.S.R. 21(E) dated 12 January 2026	Rule 10(1) proviso substituted; Rule 12(4)(a) substituted — the CAG / IA&AD exception widened to Group 'C' Central Civil posts in the IA&AD

NOTE
Schedule sankhya wale Rules se kaafi zyada baar badalta hai, kyunki reorganisations Departments aur Services badalte rehte hain. Hamesha **order ki date** par lagu Schedule dekhiye, ghatna ki date par nahi.

Schedule itna zyada kyun badalta hai. Jab bhi Department ka naam badle, autonomous body merge ho ya post re-designate ho, Schedule ki woh row dobara likhni padti hai. Rules 1 se 35 das saal mein ek baar badalte hain; Schedule saal mein kai baar.

Which column do you read first?	What it decides
Column (3) — appointing authority	Article 311(1), Rule 10(1) (who may suspend), Rule 12(4)(a) (who may not punish), Rule 24 (appeal)
Column (4) — authority competent to impose penalties	The disciplinary authority for that Service or post
Column (5) — penalties which may be imposed	Whether the authority may impose all nine penalties or only the minor ones
Schedule is silent	Rule 12(2) and Rule 24(1) fill the gap: the appointing authority, or the authority immediately above the maker of the order

EXAMPLE
Ek Ministry reorganise hui aur Group 'B' post ek Service se doosri mein gayi. Reorganisation ke baad ka koi bhi suspension ya penalty order **nayi** Schedule row par test hoga — chahe alleged misconduct saalon pehle hua ho.

DHYAN SE
Sign karne se pehle teen check. (1) Post **organised Service** mein hai ya **General Central Service** mein? (2) Schedule row “all penalties” kehti hai ya sirf minor? (3) Charge sheet ki date ke baad row **substitute** hui hai? Galat row = galat authority, aur galat authority = void order.

Post in the case file	Where the answer sits
Member of an organised Group 'A' Service	Schedule, Part I — column (3) names the appointing authority
Group 'A' post in the General Central Service	Rule 8 delegation order, else the Schedule row for that post
Group 'B' or 'C' post in a Ministry	Schedule, Part II or III — read with Rule 9(1)
Group 'D' post, or a Defence civilian post	Schedule, Part IV or V — the empowering proviso to Rule 9(1)
Any post where the Schedule is silent	Rule 12(2) and Rule 24(1): the appointing authority, or the next authority above the maker of the order

MASTER CHARTS

FOUR POSTERS FOR YOUR WALL

Chaar posters — photo lijiye, print kariye aur desk ke upar chipka dijiye. Ye poore rule-book ko aisi shaklon mein baant dete hain jo pressure mein yaad reh jaati hain.

Poster 1 All 35 rules in one line each

Rule	In one line	Rule	In one line
1	Name and commencement (1 Dec 1965)	19	Special procedure: conviction, impracticability, State security
2	Definitions — appointing authority, DA, Govt servant	20	Officers lent to another department/State
3	Application and exceptions	21	Officers borrowed from a State/authority
4	Classification of Services — Groups A to D	22	No appeal: President's orders, interlocutory, IO's orders
5	Services consist of what the Schedule says	23	Orders against which appeal lies
6	Classification of posts	24	Who is the appellate authority
6-A	Class I-IV now read as Group A-D	25	45 days to appeal
7	General Central Service is the default	26	Form and contents of the appeal
8	Group A appointed by the President (usually delegated)	27	Consideration: confirm, reduce, enhance, set aside, remit
9	Others appointed as the Schedule says	28	The original authority must implement the appellate order
10	Suspension: 3 grounds, 48 hours, 90 days, 180-day extensions	29	Revision by the President, CAG, HoD, appellate authority
11	Nine penalties + 2 provisos + 9 explanations	29-A	Review by the President on new material
12	Who may impose penalties	30	Service of orders and notices
13	Who may institute proceedings	31	Power to relax time-limits and condone delay
14	Procedure for major penalties — 24 sub-rules	32	Omitted
15	Action on the inquiry report	33	Transitory provisions
16	Procedure for minor penalties	34	Repeal and saving
17	Communication of the order	35	Removal of doubts — refer to the President
18	Common proceedings against several officers		

Poster 2 The timeline chart

Event	Time limit	Rule
Reply to the charge sheet	15 days (+15 at a time)	14(4)(b)
Absolute outer limit for the reply	**45 days** from receipt	Proviso to 14(4)(b)
First appearance before the IO	10 working days (+10)	14(7)
Inspection of documents	5 days (+5)	14(11)(i)
Notice for new documents	10 days (+10)	14(11)(iii)
Copies of witness statements	At least 3 days before examination	Note to 14(11)
Adjournment for defence preparation	Not more than 30 days	14(11)
Production of requisitioned documents	1 month (or non-availability certificate)	14(13)
Adjournment for new evidence	3 clear days	14(15)
Inquiry to be completed	6 months (+6 months at a time)	14(24)
Representation on the inquiry report	15 days	15(2)
Representation on UPSC advice	15 days	15(3)(b)
Suspension — first review	Before 90 days	10(6)
Suspension — each extension	Not more than 180 days	10(6)
Deemed suspension trigger	Custody/conviction exceeding 48 hours	10(2)
Appeal	45 days from delivery of the order	25
Revision by the appellate authority	6 months from the order	29(1)(v)

Poster 3 The four decision trees

INQUIRY ZAROORI HAI?

- Penalty (v)-(ix) mein? → **Haan**, Rule 14.
- Penalty (i)-(iv) mein? → Proposal + representation (Rule 16).
- Increment teen saal se zyada roka, cumulative effect ke saath, ya pension par asar? → **Haan**, Rule 16(1-A).
- Conviction / not practicable / State security? → Rule 19.
- Explanation ke tahat penalty nahi? → Inquiry nahi.

Which procedure for a minor penalty?

- Proposal aur imputations likhit mein bataiye.
- Jawab ka reasonable mauka dijiye.
- Inquiry sirf tab jab DA ko zaroori lage.
- Jahan chahiye UPSC se salah lijiye.
- Har imputation par finding likhiye.
- Reasoned order paas kariye aur serve kariye.

APPELLATE AUTHORITY KAUN

- Schedule / President ka order kisi ka naam leta hai? → Wahi authority.
- Group A ya B, order Appointing Authority ke subordinate ne diya? → Appointing Authority.
- Group A ya B, koi aur order? → **President**.
- Group C ya D? → Order dene wale se turant upar wali authority.
- Common proceeding? → Common DA se upar wali authority.

Appeal or revision?

- 45 din ke andar aur appellate authority maujood? → **Appeal**.
- Appeal nahi banti, ya period khatam? → **Revision** (Rule 29).
- Naya material jo pehle available nahi tha? → **Review** (Rule 29-A), sirf President.
- President ka order? → Judicial review / Rule 29-A.
- Interlocutory order? → Dono nahi; final appeal mein uthaiye.

Poster 4 The 'order-quashing' checklist

Tribunal aur High Court penalties in hi ginti ki wajahon se girate hain. Sign karne se pehle yeh checklist chalaiye — ya charged officer hain toh appeal likhne se pehle.

1. Charge sheet **definite aur distinct** thi — imputations, documents aur witnesses ke saath (Rule 14(3))?
2. **Presenting Officer** appoint hua aur officer ko batlaya gaya (Rule 14(5)(c))?
3. Officer ko **documents dekhne** aur **witness statements ki copies** milne ka asli mauka mila (Rule 14(11))?
4. **Defence Assistant** ki request par likhit mein faisla hua (Rule 14(8))?
5. Officer se uske khilaf circumstances par **generally sawaal** poochhe gaye (Rule 14(18))?
6. **Inquiry Officer** ne har finding ke kaaran likhe (Rule 14(23))?
7. **Report ki copy** aur **disagreement note** di gayi, jawab ke **15 din** ke saath (Rule 15(2))?
8. **UPSC ki advice** (jahan zaroori) di gayi, comment ke 15 din ke saath (Rule 15(3)(b))?
9. Penalty order **competent authority** ne sign kiya (Article 311(1) aur Rule 12(4)(a))?
10. Order **speaking order** hai — reasons, findings, penalty (Rule 17)?
11. Order officer ko saare annexures ke saath **serve** hua (Rule 17 aur Rule 30)?

DHYAN SE
Inme se **koi bhi** jawab “nahi” ho toh order vulnerable hai. Signature se pehle file theek kariye — signature ke baad sirf appeal ya writ bachta hai.

Yahi checklist ulta bhi chalta hai — jab aap charged officer hain aur order aa chuka hai. Har “nahi” ek **ground of appeal** ban jaata hai, rule number aur file ki date ke saath.

Missing paper	Ground to write
Charges definite (14(3))	“Charges vague — I could not know what to meet.”
Defence Assistant (14(8))	“My written request was neither allowed nor refused by order.”
General questioning (14(18))	“I did not examine myself; the IO never questioned me.”
Report + 15 days (15(2))	“Report not supplied before the penalty order.”
UPSC advice (15(3)(b))	“Advice relied on without being furnished to me.”
Competent authority (12(4)(a))	“Order by an authority below the appointing authority.”

TOOLKITS

FOUR READY RECKONERS

Chaar chhoti checklists, chaar alag desks se: Disciplinary Authority, Presenting Officer, Inquiring Authority aur charged officer.

Toolkit A — For the Disciplinary Authority

KARIYE

- Sabse pehle **appointing authority** aur apni competence tay kariye.
- Case shuru karne ki **limitation** dekhiye; deri ke kaaran likhiye.
- **Definite aur distinct** articles of charge banaiye.
- Charge sheet **proof of service** ke saath serve kariye.
- Jawab par dimaag lagaiye — sirf “put up” mat kariye.
- Report bhejne se pehle **tentative disagreement** note likhiye.
- **Speaking order** paas kariye aur annexures ke saath bhejiye.

MAT KARIYE

- Rule 16 ke raste se major penalty lagana.
- Defence reply **45 din** se aage badhana.
- Rule 15(2) ka report + 15 din diye bina penalty lagana.
- UPSC ki Advice ko reasons likhe bina nazarandaz karna.
- Aisa order sign karna jo subordinate authority sign kar sakti thi.
- Appeal teen mahine se zyada bina kaaran baithi rakhna.
- Order ya noting mein bhadki hui bhasha likhna.

Toolkit B — For the Presenting Officer

KARIYE

- Pehli hearing se pehle charge sheet padhiye.
- Har document formal taur par prove kariye — sirf mark karna proof nahi.
- Witnesses ko logical order mein examine kariye.
- Re-examination sirf cross mein aayi baaton tak rakhiye.
- Naye evidence ki soochna IO ko pehle dijiye.
- Written brief file kariye — IO ko reasons likhne mein madad milti hai.

MAT KARIYE

- Aise behave karna jaise aap Inquiring Authority hain.
- Charged officer ya uske Defence Assistant se behas karna.
- Rule 14(15) follow kiye bina achanak evidence laana.
- Evidence ka **gap** bharne ki koshish karna (Note to 14(15)).
- Record se bahar IO se case par baat karna.
- Hearing ke dauraan dhamki dena.

Toolkit C — For the Inquiring Authority

KARIYE

- Har hearing ka likhit notice dijiye aur proof rakhiye.
- Plea record kariye, sign kariye aur officer ka signature lijiye (14(9)).
- Time-limit ke andar inspection aur copies dijiye.
- Officer khud examine na kare toh use generally sawaal poochhiye (14(18)).
- Har finding ke kaaran likhiye; PO ka brief copy mat kariye.
- Report **chhe mahine** mein dijiye, ya likhit mein extension maangiye.
- Sub-rules 14(7) se 14(24) ka order follow kariye.

MAT KARIYE

- Service prove kiye bina ex parte inquiry chalana.
- Likhit order ke bina Defence Assistant mana karna.
- Defence ka mauka diye bina **naye** charge par finding likhna (Explanation to 14(23)).
- Gap bharne ke liye naya evidence lene dena.
- Chhe mahine ki limit chupchaap paar karna.
- IO ke role aur DA ke role mila dena.

Toolkit D For the charged officer

KARIYE

- Har notice acknowledge kariye aur copy rakhiye.
- 15 din mein jawab dijiye — extension **likhit** mein maangiye, 45 din ke andar.
- Documents aur witness statements jaldi maangiye.
- Pehli hearing mein apna Defence Assistant likhit mein bataiye.
- **Document** par cross-examine kariye, vyakti par nahi.
- Aakhir mein written brief file kariye.
- Appeal **45 din** mein, apne naam se, poora file kariye.

MAT KARIYE

- Inquiry boycott karna — ex parte orders aate hain.
- Kisi bhi representation mein beizzati wali bhasha.
- Sahayogiyon ke saath joint appeal file karna.
- Zubaani request par bharosa — sab kuch likhit mein.
- 45 din ki appeal limit miss karna; ho jaye toh kaaran ke saath condonation maangiye.
- Yeh maan lena ki reinstatement se case khatam.

Toolkit E For the appellate and reviewing authority

KARIYE

- Sabse pehle appeal ka **apna naam**, poora hona aur 45 din ka stamp dekhiye.
- Condonation ka faisla **reasoned** order se kariye, rubber stamp se nahi.
- Inquiry record khud padhiye — Rule 27 appeal ko file par re-hearing bana deta hai.
- **Personal hearing** dijiye jahan Rule 27(2) kahe aur natural justice kahe.
- Har ground par **speaking order** paas kariye; Rule 27(1) ek line ke rejection ki jagah nahi chhodta.
- Order, reasons ke saath, appellant aur disciplinary authority ko bhejiye.

MAT KARIYE

- File par baith jaana — der se aaya appellate order khud agle round ka ground ban jaata hai.
- Notice aur naya mauka diye bina penalty badhana (Rule 27(2) proviso).
- Appellate power delegate karna jahan Rule 25 use ek authority mein rakhta hai.
- **Time-barred** case bina condonation kaaran likhe dobara kholna.
- Rule 29(1)(v) ke tahat revision ki 6-mahine ki limit ignore karna.
- Appeal ko ehsaan samajhna — yeh Rule 22 ka **statutory right** hai.

MODEL FORMS

FIVE FORMS YOU WILL ACTUALLY TYPE

Yeh skeleton hain, precedent nahi. Har form sirf wahi elements deta hai jo Rules maangte hain — blanks bhariye, square bracket wali notes hataiye, aur sign karne se pehle har element tick kariye.



Jo form rule follow karta hai, woh appeal mein bachta hai. Jo pichhle saal ki file copy karta hai, woh nahi.

Form A — Charge memorandum — Rules 14(3) and 14(4)(a)

From: Disciplinary Authority · **To:** [name, designation, office] · **No.** [file number] · **Date:** [date].
Memorandum disciplinary authority ke signature se jaata hai, vigilance section ke nahi.

1. **Articles of charge** — har aarop ke liye ek numbered article, date, jagah aur exact kaam ya chhoot ke saath.
2. **Statement of imputations** — har article ko sahara dene wale facts aur circumstances, narrative form mein.
3. **List of documents** — jin documents se har article saabit karna hai.
4. **List of witnesses** — jin witnesses se har article saabit karna hai.
5. **Covering note** — written statement of defence **15 din** mein maanga jaata hai, aur officer personal sunwai chahta hai ya nahi.
6. **Defence Assistant** — officer ko batlaya jaata hai ki request defence mein hi ki ja sakti hai (Rule 14(8)).

! **YAAD RAKHIYE**
Har article **definite aur distinct** hona chahiye. “Misconduct generally” wala charge pehli appeal mein hi gir jaata hai.

! **DHYAN SE**
Defence ke liye extension **apne aap nahi** milti: likhit order se milti hai, aur articles of charge milne se kul **45 din** se zyada nahi (proviso to Rule 14(4)(b)).

Form B — Written statement of defence — Rule 14(4)(b)

1. Har article ko **alag-alag** maaniye, mukar jaiye ya samjhaiye — ek saath blanket denial kabhi nahi.
2. Batayein ki aap **personal sunwai chahte** hain ya nahi.
3. Apna **Defence Assistant** naam likhiye, agar chahte hain (Rule 14(8)).
4. Jo **documents** dekhne hain aur **witness statements** ki copies chahiye — maangiye (Rule 14(11)).
5. Sign aur date kariye; receipt wali copy rakhiye aur service ki date note kariye.
6. Time par jawab na de sakein toh 15 din khatam hone se **pehle likhit mein** extension maangiye.

! **YAAD RAKHIYE**
Aisa defence jisme documents ya witnesses ki koi request nahi, appeal ke liye record par kuch nahi chhodta.

Form C Inquiry report — Rule 14(23)

1. Officer ke **articles of charge** aur uska **defence**.
2. **Points for determination** — har article ke liye ek.
3. Har witness aur document ka **evidence**, aur us evidence ka assessment.
4. **Har article par finding**, finding ke **kaaran** ke saath.
5. **Ex parte** karyawahi ka note, agar hui ho (Rules 14(11) aur 14(13)).
6. **Record of inquiry**, index aur page number ke saath, har page par Inquiring Authority ka signature.

! **DHYAN SE**
Report **finding** hai, recommendation nahi. Penalty suggest mat kariye — woh Rule 15 ke tahat disciplinary authority ka kaam hai.

Form D Appeal memorandum — Rule 26

1. Appellant ka **naam, designation aur office**, aur **jis order ki appeal** hai uska number aur date.
2. **Facts** — date ke order mein, bina kisi visheshan ke.
3. **Grounds** — numbered, har ek mein woh **Rule** quote kariye jo toota.
4. **Documents** — annexures A1, A2, A3 waghairah.
5. **Prayer** — Rule 27(2) ke tahat appellate authority ke chaar raaston mein se ek.
6. **Verification** aur signature, appellant ke **apne naam** mein (Rule 26(1)).

! **YAAD RAKHIYE**
Order milne ke **45 din** mein file kariye. Der se appeal par **condonation** ki application chahiye, kaaran ke saath — maafi ka paragraph nahi.

Form E Suspension order — Rule 10

1. **Ground** tay kariye: 10(1)(a) proceeding contemplated ya pending; 10(1)(aa) State security; 10(1)(b) criminal case pending.
2. **Charge sheet ya FIR ki date** aur case ka present stage likhiye.
3. Likhiye ki officer **[date] se suspended** hai, aur **subsistence allowance** FR 53 ke tahat milega.
4. Suspension ke dauraan **headquarters** aur jis officer ko report karna hai, uska naam likhiye.
5. Likhiye ki Rule 10(6) ka **review** Review Committee ke saamne **90 din se pehle** aayega.

! **DHYAN SE**
Suspension **penalty nahi** hai aur order aisa padhna bhi nahi chahiye. “Punished by suspension” jaise shabd order gira chuke hain.

! **YAAD RAKHIYE**
Order mein jis tarah annexure ka zikr ho, usi tarah number dijiye, aur **service ki date** peechhe likhi **file copy** rakhiye. Appeal mein service date hi 45 din ki ghadi tay karti hai.

Paanch forms, ek aadat: blanks bharne se pehle woh rule dhoondhiye jo is paper ko ijazat deta hai.

REVISION

THIRTY QUESTIONS, THIRTY ANSWERS

Departmental exams aur interview board ke liye rapid-fire revision. Right column dhak kar khud ko test kariye.



Teen sau jawab de sakte hain toh kisi bhi establishment section mein aap tik jaayenge.

Q	A
When did the CCS (CCA) Rules, 1965 come into force?	1 December 1965 (Rule 1)
How many penalties are there?	Nine — five minor clauses (i) to (iv), including (iii-a), and five major (v) to (ix)
Which clause was inserted later into the minor penalties?	Clause (iii-a) — reduction to a lower stage by one stage for up to three years, without cumulative effect
Is suspension a penalty?	No. It is regulated by Rule 10 and is not in the Rule 11 list
Grounds for suspension?	(a) proceeding contemplated/pending; (aa) activities prejudicial to State security; (b) criminal case pending
Deemed suspension trigger?	Custody exceeding 48 hours, or conviction with imprisonment exceeding 48 hours
First review of suspension?	Before 90 days, on the Review Committee's recommendation
Maximum extension at a time?	180 days
Time to reply to a charge sheet?	15 days, extendable 15 days at a time — absolute ceiling 45 days
Time for the first appearance before the IO?	10 working days, extendable by 10 days
Who is the Presenting Officer?	A Government servant or legal practitioner appointed under Rule 14(5)(c)
When can you engage a lawyer?	Only if the PO is a legal practitioner, or the DA permits
How many pending cases disqualify a Defence Assistant?	Three
Time to complete an inquiry?	Six months, extendable six months at a time
What must the inquiry report contain?	Charges, defence, assessment of evidence, findings with reasons
Is a copy of the report given even if favourable?	Yes — Rule 15(2) says “irrespective of whether the report is favourable or not”
Time to represent on the report?	15 days
Must the UPSC advice be given to the officer?	Yes, with 15 days to represent (Rule 15(3)(b))
Is there a second show-cause on the proposed penalty?	No — Rule 15(6) expressly says it is not necessary
When is an inquiry mandatory for a minor penalty?	Rule 16(1-A): increment withholding affecting pension, beyond 3 years, or with cumulative effect
Which penalties can a minor-penalty authority award after a Rule 14 inquiry?	It forwards the record under Rule 14(21)(a); it cannot impose (v)-(ix)
Can a subordinate authority impose a major penalty?	No — Rule 12(4)(a) and Article 311(1)
Who may order common proceedings?	The President, or an authority competent to dismiss all the officers (Rule 18)
When can an inquiry be dispensed with?	Conviction, impracticability with recorded reasons, or State security (Rule 19)
Time to appeal?	45 days from delivery of the order, extendable on sufficient cause
Can you file a joint appeal?	No — separately and in your own name (Rule 26(1))
Who is the appellate authority for a Group C employee?	The authority immediately superior to the maker of the order
Where does an appeal against the President's order lie?	Nowhere — Rule 22(i); only judicial review or Rule 29-A
Time limit for revision by the appellate authority?	Six months from the date of the order (Rule 29(1)(v))
Who can review an order, and on what ground?	The President, on new material not available earlier (Rule 29-A)

REFERENCE

GLOSSARY, SOURCES AND DISCLAIMER

Aakhri page file ke liye: shabd ka matlab, text kahan se aaya, aur yeh kitaab kya nahi hai.

Glossary — Words that appear in the Rules

Article 309
Constitution ka provision — President (aur Governors) ko Government servants ke liye rules banane ki power.

Article 311
Subordinate authority dwara dismissal, removal ya reduction in rank se bachav, aur bina inquiry ke aisi penalty se bachav.

Article 148(5)
IA&AD se judne wale rules banane se pehle CAG se salah zaroori.

Proviso
“Provided that” se shuru hone wala clause, jo exception ya condition banata hai.

Explanation
Woh clause jo batata hai ki provision kaise padhna hai; yeh rule ka hissa hai.

Speaking order
Aisa order jisme kaaran likhe hon — bhare ya non-speaking order ke ulat.

Ex parte
Theek se notice dene ke baad, charged officer ki gair-maujoodgi mein karyawahi.

Lacuna
Evidence mein kami ya gap jo pehle hi record par aa chuka hai.

Suo motu
Authority ke apne faisle se, bina kisi application ke.

Remit
Case wapas neeche wali authority ko nayi soch ke liye bhejna.

Subsistence allowance
Fundamental Rule 53 ke tahat suspension ke dauraan kam di jane wali pay.

Sealed cover
Aisa procedure jisme selection board ki findings disciplinary case tak confidential rakhi jaati hain.

Sources — Where this text comes from

- The Central Civil Services (Classification, Control and Appeal) Rules, 1965 — Department of Personnel and Training ki publication, DoPT compilation (15 October 2018 tak update), rules 1 se 35 aur Schedule.
- DoPT notification **G.S.R. 21(E)** dated **12 January 2026** (Gazette mein 14 January 2026 ko chhapa) — Rule 10(1) ka proviso aur Rule 12(4) ka clause (a) substitute.
- DoPT notification **G.S.R. 337(E)** dated **29 May 2024** — Schedule, Part V mein amendment.
- DoPT notification **G.S.R. 18(E)** dated **10 January 2023** — Schedule, Part V mein amendment (Ordnance Factory Board ki entries hatayi gayi).
- The Central Civil Services (Classification, Control and Appeal) (Second Amendment) Rules, **2014** (31 October 2014) — UPSC ki advice dene aur uspar jawab dene ka haq (Rules 15(3), 19, 27 aur 29), aur Rule 32 ka omission.
- The Central Civil Services (Classification, Control and Appeal) Amendment Rules, **2017** — **G.S.R. 548(E), 2 June 2017** — jisse Rules 14(4)(b), 14(7), 14(11), 14(13), 14(15) aur 14(24) mein fixed timelines aayi.

- DoPT O.M. 29 March 2023 aur 26 March 2024 (disciplinary proceedings ke handling par); DoPT ka Information Document on Suspension (4 November 2022 update); aur Fundamental Rules (FR 53, FR 54) subsistence allowance aur suspension period ke treatment ke liye.
- Kitaab mein zikr kiye gaye case-law principles (Ajay Kumar Choudhary; Tulsiram Patel; S.K. Kapoor; Radhey Shyam Gupta; Pavanendra Narayan Verma) sirf practice samjhane ke liye hain — quote karne se pehle judgment khud padhiye.

DHYAN SE
Rules aksar badalte hain, aur kai baar aisi instructions se badalte hain jo Rules ka hissa nahi hote. Live case mein action se pehle **latest DoPT notification aur apni Service ki Schedule entry** check kariye.

Where to check

Four official doors (tap to open)

Neeche har link official portal kholta hai — PDF reader ya browser mein. Rules notification se badalte hain; aakhri baat portal ki hoti hai, is kitaab ki nahi.

DoPT https://dopt.gov.in
The Department of Personnel and Training — the rule-making authority for the CCS (CCA) Rules; its **Circulars** and **Notified Rules** sections carry every amendment.

Gazette of India https://egazette.gov.in
The official Gazette. A rule takes effect from the date of publication here (Rule 1, and the commencement clauses of every amendment).

India Code https://www.indiacode.nic.in
The consolidated statute database of the Government of India — useful for the bare text and for cross-checking a rule number.

CVC https://cvc.gov.in
The Central Vigilance Commission — circulars on vigilance procedure, time-limits and the handling of departmental proceedings.

NOTE
Links 1 November 2026 tak sahi hain. Portal badal gaya ho toh department ka naam aur rule number saath likh kar search kariye — Rules ka text website se nahi badalta.

Disclaimer

What this book is — and is not

Yeh ek **padhne ki comic-book guide** hai. CCS (CCA) Rules, 1965 ko aasaan bhasha mein samjhati hai aur practice ka saraansh deti hai. Yeh legal advice nahi, Government of India ki official publication nahi, aur Gazette text, Schedule ya aapki Establishment/Vigilance section ki salah ka substitute nahi.

Har quotation published text se milaya gaya hai. Jahan Rules amend hue — sabse haal 12 January 2026 — wahan kitaab current bhasha aur badlav dono dikhati hai. Is kitaab aur Gazette mein farak mile toh **Gazette hi maani jaayegi**.

Taiyaar ki gayi: **1 November 2026** tak ki position.

“Rules zanjeer nahi hain. Woh patri hain jin par case apni manzil tak surakshit pahunchta hai.” — Babu-ji

THE END · AND THE BEGINNING

Ab poora rule-book aapki jeb mein hai.

Paintees rules, ek Schedule aur beech ke saare proviso — ek baar padha, mark kiya, aur us din ke liye taiyaar jab charge sheet desk par aaye.

AAGE KYA KARIYE

1. Part VI ek baar dheere padhiye — case wahin jeete jaate hain.
2. Poster 1 (saare 35 rules) desk ke upar chipkaiye.
3. Exam se pehle 30 sawaal hal kariye.
4. Paanch model forms apni template file mein copy kariye.
5. File mein is kitaab ka zikr karne se pehle DoPT portal dekhiye.



“Rules zanjeer nahi hain. Woh patri hain jin par case apni manzil tak surakshit pahunchta hai.”

— Babu-ji, Establishment Section

SARKARI RULES · SIMPLIFIED SERIES

CCS (CCA) Rules, 1965 — The Comic Book · Edition 2026 · Position as on 1 November 2026

Sirf padhne ki guide. Gazette text aur DoPT instructions hi final hain.

LAW MADE SIMPLE

35 rules · 9 penalties · 9 Parts · 1 Schedule · kuch bhi chhoda nahi

Yeh kitaab rakhiye. Ek sahyogi ko case ke aath station sikhaiye.

Version 1.1 (Hinglish) · 1 November 2026 · har rule, proviso aur exception, ek jagah